

THE COUNCIL OF THE CITY OF HOBOKEN

MINUTES FOR MEETING OF JULY 9, 2025

Council President James Doyle opened the meeting at 7:00 P.M. and stated, “I would like to advise all those present that notice of this meeting has been provided to the public in accordance with the provisions of the Open Public Meetings Act, and that notice was published in the Jersey Journal and on the City website, copies were provided in the Hoboken Reporter, The Record, The Newark Star-Ledger and also placed on the bulletin board in the lobby of City Hall. If any Councilperson or member of the public believes that this meeting, or any portion thereof, is in violation of the Open Public Meetings Act, they are requested to so advise the City Council and City Clerk at this time, or at the time of the believed violation, in accordance with N.J.S.A. 10:4-17. Written objections, if any, shall be made in writing to the City Clerk.”

Call to Order

Attendee Name	Title	Status	Arrived
Phil Cohen	Council Vice President	Present	
Tiffanie Fisher	2nd Ward Council Member	Present	
Emily Jabbour	Council-at-Large	Present	
Paul Presinzano	1st Ward Council Member	Present	
Joe Quintero	Council-at-Large	Present	
Ruben Ramos	4th Ward Council Member	Present	
Michael Russo	3rd Ward Council Member	Present	
James Doyle	Council President	Present	

PRESENTATION FOR REBUILD BY DESIGN BY THE NJDEP

2nd Readings and Final Reading

B-777

AMENDMENTS TO HOBOKEN CITY CODE CHAPTER 154 “RENTAL HOUSING;
WAREHOUSING” TO CLARIFY THE CITY’S ABILITY TO CONDUCT INSPECTIONS
(COUNCILMAN PRESINZANO, COUNCILMAN COHEN)

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows
(additions noted in underline, ~~deletions noted in strikethrough~~):

**SECTION ONE: AMENDMENTS TO HOBOKEN CITY CODE CHAPTER 154 “RENTAL
HOUSING; WAREHOUSING” TO CLARIFY ASPECTS OF THE ORDINANCE INCLUDING
THE CITY’S ABILITY TO CONDUCT INSPECTIONS**

§ 154-1 OWNERS OF DWELLING UNITS SUBJECT TO PROVISIONS; EXEMPTIONS.

A. The owner of any dwelling unit other than those exempted below shall be subject to the provisions of this chapter.

B. The following are exempt from the provisions of this chapter:

- (1) Units in owner-occupied buildings where there are four units or less and one of these units is owner-occupied.
- (2) Units in newly constructed buildings which are being rented for the first time. After the first rental, such units will be subject to the provisions of this chapter.
- (3) Units where the owner is participating in an affordable housing project approved by the community development agency of Hoboken.
- (4) Units in a building whose owner has transmitted his first sixty-day notice of his intentions to convert the building into a condominium or cooperative and his full plan of conversion to the city clerk pursuant to N.J.S.A. 2a:18-61.8.
- (5) Units in motels and hotels.

§ 154-2 RENTAL REQUIREMENT; EXCEPTION.

All such units shall be rented and occupied by a new tenant within two months after the end of the preceding tenancy, which shall be defined as the last day of residence by the preceding tenant or tenants, except where this requirement has been waived by the Division of Housing~~rent leveling board~~ under the provisions of § 154-5, below, in which event the unit shall be rented and occupied within the time period specified in the waiver.

§ 154-3 NOTIFICATION OF VACANCIES.

A. The owner of any such unit that remains which is still vacant 30 days after the end of the preceding tenancy shall notify the ~~rent leveling board~~ Division of Housing, in writing, within five days of said continuing vacancy.

B. Said notification shall include the following information:

- (1) The address and location within the building of the unit.
- (2) The rent charged the preceding tenant and rent to be charged the proximate incoming tenant.
- (3) The name, address and telephone number of the owner.
- (4) The name, address and telephone number of the owner's agent and/or resident manager, if any.

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C. No notification shall be required with respect to any unit rented and occupied within 30 days or less from the end of the preceding tenancy.

§ 154-4 NOTIFICATION OF OCCUPANCY.

Within 30 days after submission of the report required under § 154-3, above, the landlord shall notify the Division of Housing ~~rent leveling board~~ that the unit has been rented and occupied, with the names of the new tenant or tenants and the terms of the tenancy. Failure to have the unit rented and occupied within 60 days after the end of the preceding tenancy, except where a waiver has been granted by the Division of Housing ~~rent leveling board~~, shall be considered a violation of this chapter and subject to the penalties set forth in § 154-7 below.

§ 154-5 LANDLORDS SEEKING WAIVERS OF REQUIREMENTS.

A. A landlord may seek a waiver of the requirement to rent the unit within 60 days of the end of the preceding tenancy where the condition of the unit or other special circumstances make rental within such ~~time~~ period impossible. In order to obtain a waiver, the landlord must submit a request, in writing, to the ~~rent leveling board~~ Division of Housing within 30 days or less from the end of the preceding tenancy, setting forth with specificity the following:

- (1) The reasons that the unit cannot be rented within such ~~time~~ period;
- (2) The steps the landlord shall take to remedy the conditions that make it not impossible to rent the unit, and
- (3) The date by which the unit shall be, or is anticipated to be, rented and occupied.

B. Full documentation, such as code violation reports, engineering or inspection reports, etc., shall be provided by the landlord. Any waiver granted by the Division of Housing ~~rent leveling board~~ under this section shall specify a date by which the unit shall be rented and occupied. The Division of Housing ~~rent leveling board~~ may extend that date upon written request of the landlord but may not provide more than two such extensions of not more than 60 days each.

C. In no circumstance shall any waiver, including extensions, exceed six months from the time of granting of such waiver.

D. The following circumstances shall constitute grounds for granting of a waiver by the Division of Housing ~~rent leveling board~~:

- (1) An owner wishes to maintain a vacant unit in order to reserve said unit for a family member. The owner shall provide in the waiver request full documentation, such as the name of the future tenant and the date of occupancy.

(2) An owner wishes to maintain a vacant unit in order to improve the conditions of said unit. The owner shall provide full documentation in the waiver request, such as up-to-date building and housing inspection reports, improvement plans, all related permits and the date by which the unit shall be rented and occupied.

(3) An owner maintains a vacant unit in order to correct code violations in said unit. The owner shall provide in the waiver request full documentation, such as code violations reports, correction plans, permits and the date by which the unit shall be rented and occupied.

§ 154-6 FILING COMPLAINTS.

Any individual affected by the action or inaction of an owner of a dwelling unit subject to the provisions of this chapter, any civic organization and any appropriate municipal agency may file a complaint of violation of this chapter with the Hoboken Municipal Court.

§ 154-7 VIOLATIONS AND PENALTIES.

A. A first violation of (a) § 154-2 of this Chapter, (b) ~~or~~ the conditions upon which a waiver has been granted by the Division of Housing board, or (c) a request to inspect pursuant to § 154-8 shall be punishable by a fine of not more than \$500 for each unit in violation. Subsequent violations shall be punishable by a fine of not less than \$100 nor more than \$500. Each day during which an owner is in violation of § 154-2 of this Chapter, ~~or~~ the conditions upon which a waiver has been granted, or a request to inspect pursuant to § 154-8 shall constitute a separate violation hereunder.

B. A violation of any other provision of this Chapter, where there has been no finding of a violation of § 154-2 of this ~~e~~Chapter, the conditions upon which a waiver has been granted, or a request to inspect pursuant to § 154-8 shall be punishable by a fine not to exceed \$100 for each unit found in violation for each day the owner is found in violation.

§ 154-8 INSPECTION

The Director of the Division of Housing or his or her designee is hereby authorized to inspect any property subject to the provisions of this Chapter to ascertain compliance with this Chapter upon seven (7) days written notice to the property owner unless otherwise agreed to by the Director of the Division of Housing or his or her designee and the property owner. Failure to accommodate or allow said inspection shall constitute a separate violation of this Chapter for each unit where an inspection has been requested, and the property owner shall be subject to penalties as detailed in Section § 154-7(A) above.

§ 154-9 VACANCIES UPON EFFECTIVE DATE.

Any landlord of any unit ~~that which~~ has been vacant 30 days or more from the end of the preceding tenancy as of the effective date of this chapter shall be required to file the notification required under § 154-3 of this chapter within 15 days of the effective date of this chapter.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

Members of the public who spoke: Cheryl Fallick, Michael Evers, Patricia Waiters, Manuel Rivera Soler

RESULT:	Adopted [Unanimous]
SPONSOR:	Paul Presinzano
SECOND:	Ruben Ramos
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

B-778

AMENDMENT TO HOBOKEN CITY CODE § 155-2.1 "TRANSITION FROM RENT REGULATION BY PREEMPTING GOVERNMENTAL AGENCY TO REGULATION OF THIS CHAPTER" TO CLARIFY THE CALCULATION OF BASE RENT (**COUNCILMAN PRESINZANO**)

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, ~~deletions noted in strikethrough~~):

SECTION ONE: AMENDMENT TO HOBOKEN CITY CODE §155-2.1 “TRANSITION FROM RENT REGULATION BY PREEMPTING GOVERNMENTAL AGENCY TO REGULATION OF THIS CHAPTER” TO CLARIFY THE CALCULATION OF BASE RENT

§ 155-2.1 TRANSITION FROM RENT REGULATION BY PREEMPTING GOVERNMENTAL AGENCY TO REGULATION OF THIS CHAPTER.

If a contract between a landlord and a governmental agency duly provides for that governmental agency to regulate the amount of rent received by that landlord, and if the authority of that governmental agency supersedes the authority of the City of Hoboken to regulate such rents, then the application of this Chapter shall be preempted during the period of governmental agency regulation specified in the contract. Until such a contract begins, and immediately after the contract terminates, this Chapter shall ~~operate~~continue to regulate such rents. Upon termination of such a contract, the "base rent" for dwelling units under this section shall be the last rent level received and retained by the landlord prior to the termination of the preemptive governmental agency regulation reduced by an amount equal to the sum of all applicable, itemized, and identifiable water, sewer, capital improvement, and any other surcharges as defined by this Chapter, and calculated by the Rent Regulation Officer for inclusion in a new legal rent under this Chapter. Furthermore, “base rent”, when calculated by the Rent Regulation Officer, shall not include any surcharge or portion thereof that may have been received and/or collected by the landlord but not retained by the landlord as income prior to the termination of the preemptive governmental agency regulation, such as a surcharge that is based upon a tenant’s income (whether said surcharge is referred to as an “income surcharge” or by another name) that was previously included in the last rent received and paid to other entities after collection.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall be considered effective retroactive to January 1, 2025.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

Members of the public who spoke: Patricia Waiters, Ernest Boyd, Manuel Rivera Soler

RESULT:	Adopted [Unanimous]
SPONSOR:	Paul Presinzano
SECOND:	Ruben Ramos
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

B-779

ORDINANCE AMENDING CHAPTER 192 PARKING FOR PERSONS WITH DISABILITIES (COUNCIL MEMBER JABBOUR)

WHEREAS, Chapter 192 of the Hoboken City Code includes regulations for parking spaces for persons with disabilities; and,

WHEREAS, §192-4(A) designates the parking spaces for persons with disabilities specifically approved to park in a reserved on-street parking space.

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, ~~deletions noted in strikethrough~~):

SECTION ONE: AMENDMENTS TO HOBOKEN CITY CODE CHAPTER 192, §192-4, TO REMOVE DESIGNATED PARKING SPACES FOR PERSONS WITH DISABILITIES

§192-4 Enumeration of spaces.

~~AM, 10 Church Towers (north side of Fourth Street, beginning at a point 29 feet west of the westerly curbline of Clinton Street and extending 10 feet westerly therefrom)~~

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	Adopted [Unanimous]
SPONSOR:	Emily Jabbour
SECOND:	James Doyle
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

B-780

AN ORDINANCE AMENDING CHAPTER 179A, ARTICLE I, SECTION 179A-20 OF THE HOBOKEN CITY CODE TO ADJUST TAXICAB FARES (**COUNCIL MEMBER JABBOUR**)

- 1. **WHEREAS**, permitted taxi fares in Hoboken have not been amended since April 2019; and,
- 2. **WHEREAS**, expenses incurred by taxi operators have increased in recent years commensurate with inflation, where the Consumer Price Index has increased by 25% since April 2019.

NOW, THEREFORE, the Mayor and the City Council of the City of Hoboken do hereby ordain as follows (additions noted in underline, ~~deletions noted in strikethrough~~):

SECTION ONE: AN ORDINANCE AMENDING CHAPTER 179A, ARTICLE I, SECTION 179A-20 OF THE HOBOKEN CITY CODE TO ADJUST TAXICAB FARES

§ 179A-20 Taxicab fares.

The maximum rates of fare allowable for taxicabs licensed by the City of Hoboken shall be as follows:

- A. Maximum allowable intra-City fares. The maximum allowable fare for intra-City taxi service shall be ~~\$8\$10.00, except for taxi service initiating from the taxi stand at the New Jersey Transit/PATH station, which shall have a maximum intra-City fare of \$7.~~
- B. Additional allowable fees.
 - (1) If cab rides are shared with the consent of the first rider(s), the fee may be increased by ~~\$7\$8.00~~ so long as the second rider(s) is not going to the same exact destination. There shall be no more than two paying passengers per shared ride. The right of the taxicab operator to transport shared rides applies only at taxi stands designated by the City of Hoboken if there are more passengers than available taxis. The first rider must be taken to his or her destination first.
 - (2) If a taxi picks up a party of more than one person at the taxi stand at the New Jersey Transit/PATH station for intra-City travel, the taxi driver may charge an additional fee of \$1 for each additional person, which fee shall be in addition to the allowable fare of ~~\$7\$10.00~~, except that there shall be no additional charge for children under the age of 13 years old.
- C. Allowable baggage fees. In addition to the aforesaid rates, there shall be a charge of \$0.50 for each bag exceeding two, with which a driver assists a passenger, except that senior citizens shall not be subject to this fee.
- D. Maximum allowable non-intra-City fares. Every driver must have a City-approved rate book in the vehicle at all times and must use the rates included in the book.
- E. Taxi fares may be amended on an annual basis as of January 1 of every year in accordance with the CPI as reported by the United States Bureau of Labor Statistics, or up to 3%, whichever is lower, thereafter rounded to the nearest dollar. However, under no circumstances shall taxi fares decrease from the previous year.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

Members of the public who spoke: Manuel Rivera Soler

RESULT:	Adopted [Unanimous]
SPONSOR:	Emily Jabbour
SECOND:	James Doyle
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

B-781

ORDINANCE AMENDING AND SUPPLEMENTING CHAPTER 158 (RENT INCREASES) OF THE HOBOKEN CITY CODE BY ADDING A NEW SECTION 158-2, ENTITLED “PROHIBITION AGAINST ALGORITHMIC RENT-FIXING IN THE RENTAL HOUSING MARKET” (**COUNCILMAN COHEN, COUNCILMAN QUINTERO**)

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, deletions noted in strikethrough):

SECTION ONE: ORDINANCE AMENDING AND SUPPLEMENTING CHAPTER 158 (RENT INCREASES) OF THE HOBOKEN CITY CODE BY ADDING A NEW SECTION 158-2, ENTITLED “PROHIBITION AGAINST ALGORITHMIC RENT-FIXING IN THE RENTAL HOUSING MARKET”

§ 154-8 PROHIBITION AGAINST ALGORITHMIC RENT-FIXING IN THE RENTAL HOUSING MARKET.

A. Prohibited conduct. Landlords who rent any residential dwelling unit (defined as any primary residence excluding medical/long-term care or detention facilities) in the City of Hoboken are prohibited from price fixing using algorithmic pricing. For purposes of this chapter, “price fixing using algorithmic pricing” shall be defined as the use of software, algorithms, or data-sharing platforms to collect and analyze nonpublic competitor information from other real estate lessors in order to coordinate, recommend, or implement rental prices, lease terms, or occupancy levels for residential dwelling units among competing real estate lessors. For purposes of this chapter, “nonpublic competitor information” shall be defined as information including, but not limited to, prices, supply levels, security deposits, ideal occupancy levels, lease contract termination, renewal dates of residential dwelling units or any other material terms that is less than 365 days old and is not widely and readily available to the public at no cost.

B. Enforcement.

1. Enforcement. Alleged violations of this chapter may be brought by the Division of Housing, or any private citizen alleging to be aggrieved, to the Hoboken Municipal Court for adjudication.

C. Penalties. Any person violating the requirements set forth in this chapter shall, upon conviction, be subject to one or more of the following penalties:

1. Penalties as prescribed under N.J.S.A. 40:49-5; or,
2. By a fine not exceeding \$2,000.00; or,
3. By a period of community service not exceeding ninety (90) days.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

Members of the public who spoke: Adrian Orozco, Ron Bautista, Kevin Weller, Sylvia Aelou, Saoirse Mooney

RESULT:	Adopted [Unanimous]
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

B-782

ORDINANCE AMENDING AND SUPPLEMENTING CHAPTER 155 (RENT CONTROL), ARTICLE III (RENT LEVELING AND STABILIZATION BOARD AND OFFICE), SECTION 155-23 (DETERMINATION APPEABLE) OF THE CITY CODE TO UPDATE APPEAL PROCEDURES FOR RENT DETERMINATIONS (**COUNCIL MEMBER DOYLE**)

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, deletions noted in strikethrough):

SECTION ONE: ORDINANCE AMENDING AND SUPPLEMENTING CHAPTER 155 (RENT CONTROL), ARTICLE III (RENT LEVELING AND STABILIZATION BOARD AND OFFICE), SECTION 155-23 (DETERMINATION APPEALABLE) OF THE CITY CODE TO UPDATE APPEAL PROCEDURES FOR RENT DETERMINATIONS

§ 155-23. Rent Regulation Officer Determination ~~a~~Appealable.

A. All determinations made by the Rent Regulation Officer are appealable to the Board. The burden of said appeal is on the appellant who must demonstrate that the Officer's determination was in error or arbitrary, capricious and unreasonable. Said request for an appeal must be formally initiated ~~filed~~ with the ~~Board~~ Rent Control Office within 20 days of the rent Regulation Officer's disseminating a determination so that a hearing can be scheduled before the Board ~~decision~~.

1. **Appeal of a Determination.** Any appeal challenging a Rent Regulation Officer's determination must include those documents that were originally submitted to the Rent Regulation Officer related to the determination, a written statement explaining the basis for the appeal, and a copy of the Rent Regulation Officer's decision related to the determination. New information that was not provided to the Rent Regulation Officer prior to a determination may be considered in the appeal of the determination, but its probative value should be downgraded based on the availability of the information at the time of the determination and the circumstances surrounding it not being provided at that time. The appellant must fulfill these documentary requirements within thirty (30) days of formally initiating the Request for Appeal, otherwise, the appeal will be dismissed for lack of prosecution. Standing to challenge a Rent Regulation Officer's determination shall be narrowly construed such that the party must have a sufficient connection to the determination that it will suffer actual harm (e.g., a landlord or a tenant directly related to the determination would have standing).

2. **Application and Submission Requirements.** The above-described documents submitted by the appellant for a hearing before the Board shall be submitted electronically as one PDF document with a table of contents and sections bookmarked, as well as nine (9) hard copies, each with a table of contents and sections physically bookmarked (e.g., tabs or dividers). Submissions must include all underlying documentation supporting the application or appeal. The appellant is

responsible for ensuring that the submission is organized in a manner that allows the Board to efficiently locate and review the relevant information. The appellant

3. **Submission Deadlines.** All applications, supporting documents, and any evidence to be relied upon at the hearing must be submitted to the Rent Control Office no less than two (2) weeks prior to the hearing date. Failure to comply with these timing requirements may result in the submitted documents being excluded from consideration.
4. **Notice of interested Parties.** The appellant shall deliver to an interested party with standing (e.g., the tenant or landlord of a unit) involved in the appeal the complete application and supporting documentation at least (1) week prior to the hearing, either via email (preferred) or by certified mail. Proof of service (such as delivery confirmation) to interested parties with standing must be provided to the Board.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

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SECTION FIVE: CODIFICATION

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Members of the public who spoke: Cheryl Fallick, Manuel Rivera Soler

RESULT:	Adopted [Unanimous]
SPONSOR:	James Doyle
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

B-783

ORDINANCE AMENDING, RE-ADOPTING, AND RE-ENDORSING THE REDEVELOPMENT PLAN FOR THE WESTERN EDGE REDEVELOPMENT AREA, JEFFERSON AND MADISON STREET SUBAREAS (COUNCILMAN COHEN)

1. **WHEREAS**, the Local Redevelopment and Housing Law, N.J.S.A. 40A:12A-1, et seq., as amended and supplemented (the "**Redevelopment Law**"), authorizes municipalities to participate in the redevelopment and improvement of areas in need of redevelopment; and,
2. **WHEREAS**, by Ordinance of the City Council (the "**City Council**") of the City of Hoboken, the Redevelopment Plan for the Western Edge Redevelopment Plan Area (the "**Redevelopment Plan**") was adopted on August 5, 2015, which sets forth the plan for the Western Edge Redevelopment Area; and,
3. **WHEREAS**, the Redevelopment Plan has been amended from time to time; and,
4. **WHEREAS**, the City wishes to further amend the Redevelopment Plan as set forth below; and,
5. **WHEREAS**, this Ordinance was referred to the Planning Board of the City of Hoboken for review and recommendation pursuant to the Redevelopment Law; and,
6. **WHEREAS**, the Planning Board issued a report to the City advising that the Ordinance is consistent with or is otherwise designed to effectuate the City of Hoboken Master Plan and recommending the adoption of the Ordinance; and,
7. **WHEREAS**, the City has reviewed and considered the recommendations of the Planning Board and determined that the proposed changes within the Western Edge Redevelopment Area are consistent with the goals and objectives of the City of Hoboken Master Plan and the Redevelopment Plan; and,
8. **WHEREAS**, upon passage of this Ordinance, the provisions hereof shall amend and supersede the Redevelopment Plan; and,

9. **WHEREAS**, pursuant to N.J.S.A. 40A:12A-7, the Redevelopment Plan has been referred to the Planning Board for its review and recommendation; and,
10. **WHEREAS**, on June 10, 2025, the Planning Board reviewed the Redevelopment Plan, and in a memorandum memorialized on June 11, 2025, determined that the Redevelopment Plan was substantially consistent with the City's Master Plan and provided comments and recommendations (individually a "**Recommendation**" and collectively, the "**Recommendations**") relating to the Redevelopment Plan, attached hereto as Exhibit A; and,
11. **WHEREAS**, the City Council finds the Planning Board's input to be relevant and meaningful and for these purposes desires to review and respond to the Recommendations and to consider whether to approve, disapprove, or change any recommendation; and,
12. **WHEREAS**, pursuant to N.J.S.A. 40A:12A-7(e), the City Council approves one Recommendation of the Planning Board and disapproves the other Recommendation of the Planning Board, as set forth in Exhibit B attached hereto; and,
13. **WHEREAS**, after reviewing the Recommendations and consulting with City professionals, the City Council has determined to adopt the Redevelopment Plan, as revised following review of the Recommendations, attached hereto as Exhibit C, and finds the Redevelopment Plan to be either substantially consistent with the Master Plan or designed to effectuate the Master Plan; and,
14. **WHEREAS**, the Ordinance meets the statutory requirements of, and can be adopted consistent with, the applicable provisions of the Redevelopment Law.

NOW, THEREFORE, BE IT ORDAINED, by the City Council of the City of Hoboken as follows:

Section 1. The Redevelopment Plan is hereby amended, re-adopted and re-endorsed in its entirety, inclusive of the amendments reflected in Exhibit A (the "Amended Redevelopment Plan").

Section 2. The Western Edge Redevelopment Plan, first adopted by the City Council on August 5, 2015, and as amended to date, meets the criteria, guidelines and conditions set forth at N.J.S.A. 40A:12A-7 and is otherwise in conformance with the provisions of the Local Redevelopment and Housing Law, N.J.S.A. 40A:12A-1, et seq.

Section 3. The Western Edge Redevelopment Plan, first adopted by the City Council on August 5, 2015, and as amended to date, is consistent with the City of Hoboken's Master Plan or is designed to effectuate the Master Plan.

Section 4. The Western Edge Redevelopment Plan, first adopted by the City Council on August 5, 2015, and as amended to date, shall continue to supersede existing zoning, and the Official Zoning Map is hereby amended to reflect the superseding zone set forth in the Redevelopment Plan.

Section 5. The Amended Redevelopment Plan shall amend and supersede the Redevelopment Plan adopted by the City Council on August 5, 2015, and as amended to date, and applicable provisions of the Zoning Ordinance of the City of Hoboken. In all situations where zoning issues are not specifically addressed by the Amended Redevelopment Plan, the Zoning Ordinances of the City of Hoboken shall remain in full force and effect.

Section 6. Pursuant to N.J.S.A. 40A:12A-7(c), the City Zoning Map is hereby amended consistent with Section 1 above, so as to indicate that the Amended Redevelopment Plan applies to the Western Edge Redevelopment Area depicted in the attached Redevelopment Plan, and which is further designated as Block 92, Lots 1.01 and 1.02, Block 106, Lot 1, and Block 112, Lot 1 on the Tax Map of the City of Hoboken.

Section 7. If any provision of this Ordinance shall be held invalid by any court of competent jurisdiction, the same shall not affect the other provisions of this Ordinance, except so far as the provision so declared invalid shall be separable from the remainder of any portion thereof.

Section 8. All ordinances or parts of ordinances inconsistent with this Ordinance are hereby repealed.

Section 9. This Ordinance shall take effect immediately upon adoption and publication according to law.

Meeting Date: _____

Date of Introduction:

[Ordinance Amending, Re-Adopting, and Re-Endorsing the Redevelopment Plan for the Western Edge Redevelopment Area, Jefferson and Madison Street Subareas]

EXHIBIT A

PLANNING BOARD RECOMMENDATIONS

Attached hereto.

EXHIBIT B

CITY COUNCIL RESPONSE TO RECOMMENDATIONS

1. **Date of Amended Redevelopment Plan.** The City Council agrees with the Recommendation of the Planning Board to revise the cover page of the Amended Redevelopment Plan to reflect the adoption of Ordinance B-754 by the City Council on April 24, 2025. The cover page of the Amended Redevelopment Plan shall also include the date the Amended Redevelopment Plan was amended, re-adopted, and re-endorsed pursuant to this Ordinance.

2. **Building and Yard Requirements.** The City Council does not accept this Recommendation because it is not in conformance with the partial settlement agreements resulting from the matter captioned as Just Block 112, LLC and Hoboken Western Edge, LLC v. City of Hoboken et al., Docket No. HUD-L-4207-21.

EXHIBIT C

REDEVELOPMENT PLAN

Attached hereto.

RESULT: Tabled
SPONSOR:
SECOND:

B-784

ORDINANCE AMENDING CHAPTER 155, SECTIONS 155-16, 155-17, AND 155-20 OF THE HOBOKEN CITY CODE TO CLARIFY CERTAIN DETERMINATIONS, CONSIDERATIONS OF THE RENT LEVELING BOARD AND APPLICATION FEES
(COUNCIL MEMBER JABBOUR)

1. **WHEREAS**, in the late 1980's the City repealed 155-2H which pertained to a then-defined term "completely vacant and deteriorated buildings;" and,
2. **WHEREAS**, the Code at that time had allowed for a one time exemption (thus resetting the rent to market rate) for a building falling under this detailed, complicated definition; and,
3. **WHEREAS**, when the City repealed 155-2H, the City neglected to repeal and remove portions of 155-16, 17, and 20A in the Code that were related to concepts in the old, now repealed, section 155-2H; and,
4. **WHEREAS**, 155-2H had been "reserved" (and left blank - aka "[Reserved]") in the Code from 1989 until 2023; and,
5. **WHEREAS**, in 2023, the City amended the Code to added a new provision into section 155-2H that does not pertain to the repeal of the concept "completely vacant and deteriorated buildings" previously contained in 155-2H; and,
6. **WHEREAS**, the purpose of this ordinance is to clarify that since the repeal of 155-2H, a landlord does not have a right/ability to obtain a one-time exemption (to reset rent to market) for "completely vacant and deteriorated buildings"; and
7. **WHEREAS**, the intent and purpose of this ordinance is to clarify the Code and correct the administrative error in failing to remove the inconsistent provisions from the Code as outlined herein that should have been removed simultaneously as part of the repeal of 155-2H in the late 1980's.

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, deletions noted in strikethrough):

SECTION ONE: ORDINANCE AMENDING CHAPTER 155, SECTIONS 155-16, 155-17, AND 155-20 OF THE HOBOKEN CITY CODE TO CLARIFY CERTAIN DETERMINATIONS, CONSIDERATIONS OF THE RENT LEVELING BOARD, AND APPLICATION FEES

§ 155-16. Determining officials.

A. The Regulation Officer shall make all determinations regarding the eligibility of a newly constructed dwelling for an exemption as defined above.

B. The Rent Regulation Officer shall make all determinations regarding the eligibility of a building completely vacant since January 1, 1984, for an exemption as defined above.

~~C. The Rent Leveling and Stabilization Board shall make all determinations regarding the eligibility of a completely vacant and deteriorated building for an exemption as defined above.~~

§ 155-17. Consideration in making determinations.

~~A. In making these determinations under this Article II of this Chapter of the Code, the Board, to the extent applicable, shall review the application under this Article within sixty (60) days, or as soon as practical, proceed as follows:~~

~~A. Review the registration proposal and supporting documentation within 60 days, or as soon as practicable, of their submission to the Officer. Said proposal must assert that:~~

~~(1) The building is completely vacant and will have been completely vacant for at least six months prior to the exemption granted under this Article and that said vacancy did not occur through unlawful means attributable to the applicant.~~

~~(2) The building is in a deteriorated condition and requires major reconstruction.~~

~~(3) The major reconstruction shall include, by way of example, the repair and improvement of the exterior walls; the reconstruction of the interior walls; all new systems for plumbing, heating and electric; new roof; new windows; sprinkler systems; enunciated panels and electric smoke alarms; all permits and approvals as required by the applicable codes.~~

B. The Board shall, in its ~~initial~~ review, consider ~~determine~~ the circumstances surrounding any application under this Article, as set forth in the relevant section of this Article. ~~that the building is vacant and deteriorated and requires major reconstruction. It is the intention of this chapter that a building that is in good condition shall not be granted an exemption under this Article. If the building~~

complies with the requirements of this Article, the Board shall issue a preliminary approval to the applicants to proceed accordingly.

C. Upon completion of the major reconstruction, the applicant shall submit a certificate of major reconstruction, indicating compliance with and performance of the proposal for which was issued a preliminary approval. The applicant shall also submit a certificate of vacancy, indicating that the building is and has been completely vacant for at least six months and that said vacancy did not occur through unlawful means attributable to the applicant.

D. Upon a determination that the applicant satisfies the requirements of this Article, the Board shall grant the exemption as the same is defined in ~~§ 155-2H~~.

§ 155-20 Fees for application and proceedings.

A. The following fees shall apply to all applications or other proceedings of the Rent Leveling and Stabilization Board and Rent Regulation Officer:

- (1) Capital improvement surcharge: \$100.
- (2) ~~Completely vacant and deteriorated buildings: \$100. (Reserved)~~
- (3) (Reserved)
- (4) All requests for updating legal base rents; applications contesting imposition of rent increases under § 155-5 or applications for reduction in rent pursuant to § 155-15 shall have a fee of \$30 per unit.
- (5) All rent-controlled properties must pay a \$50 annual registration fee; those properties with nine or fewer units will pay \$10 additional per unit, and properties with 10 or more units will pay \$15 additional per unit.
- (6) Inspection and/or issuance of certificates of substantial compliance by the office of the Construction Officer (per apartment unit): \$25.
- (7) Building vacant since January 1, 1984: \$50.
- (8) Hardship increase application: \$50.
- (9) Appeal from Rent Regulation Officer to Board: \$50.
- (10) Vacancy decontrol filing: \$50.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or

part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

Members of the public who spoke: Cheryl Fallick, Amanda Boardman

RESULT:	Adopted [Unanimous]
SPONSOR:	Emily Jabbour
SECOND:	James Doyle
AYES:	Cohen, Fisher, Jabbour, Quintero, Ramos, Russo, Doyle
ABSTAIN/ALTERNATE:	
	Paul Presinzano

B-785

AN ORDINANCE OPTING INTO THE GARDEN STATE C-PACE PROGRAM TO FACILITATE THE FINANCING OF C-PACE PROJECTS (**COUNCIL MEMBER FISHER**)

- 1. **WHEREAS**, facilitating the direct financing of clean energy and resiliency-related improvements (“C-PACE Projects”) on commercial and certain other types of property will enable the City of Hoboken (“Municipality”) in the County of Hudson (“County”) to contribute toward the goals of community sustainability and the reduction of greenhouse

gas, carbon emissions and energy consumption, while also providing a valuable service to the citizens of this community that will create jobs and strengthen our ratable base; and,

2. **WHEREAS**, the Legislature and the Governor of the State of New Jersey (the “State”) have declared it to be the public policy of this State to invest in clean energy and resiliency-related improvements to conserve our resources and allay the impact of natural disasters; and,
3. **WHEREAS**, the Legislature and the Governor of the State have authorized the establishment of the Garden State C-PACE Program, pursuant to P.L. 2021, c. 201 (N.J.S.A. 34:1B-374 et seq.) (the “Act”); and,
4. **WHEREAS**, pursuant to the Act, the New Jersey Economic Development Authority (the “Authority”) has issued Guidelines for the Garden State C-PACE Program; and,
5. **WHEREAS**, any capitalized terms used in this Ordinance if not defined herein shall have their meaning as set forth in the Program Guidelines; and,
6. **WHEREAS**, pursuant to the Act and the Program Guidelines, municipalities may “opt in” to the Garden State C-PACE Program to facilitate the Direct Financing of C-PACE Projects; and,
7. **WHEREAS**, in order to participate in the Garden State C-PACE Program, a municipality must adopt an opt-in ordinance authorizing it to enter into a Garden State Program Agreement with the Authority; and
8. **WHEREAS**, in compliance with the Act and the Program Guidelines, and in order to facilitate Direct Financing pursuant to the Garden State C-PACE Program, this Ordinance authorizes the creation of C-PACE Assessments to be imposed on Eligible Properties located within the Municipality, at the request of their Eligible Owners; and,
9. **WHEREAS**, pursuant to the Act and the Program Guidelines, a C-PACE Assessment shall be considered a single, continuous first lien, paramount to all prior or subsequent alienations and descents or encumbrances thereon, except subsequent taxes, charges or assessments, and such lien shall not be extinguished by the Municipality’s *in rem* foreclosure proceedings; and,
10. **WHEREAS**, pursuant to the Act and the Program Guidelines, a C-PACE Assessment shall be treated as a municipal lien rather than a contractual lien for all purposes of law; and,
11. **WHEREAS**, a C-PACE Assessment shall be entered into voluntarily by an Eligible Owner to facilitate the Direct Financing of a C-PACE Project with a loan from a Qualified Capital

Provider, the repayment of which is made by way of the C-PACE Assessment on the Eligible Property on which the C-PACE Project is or will be located; and,

12. **WHEREAS**, opting-in to the Garden State C-PACE Program is in the best interests of the health, safety, and welfare of the Municipality and will generate more economic opportunities for citizens, property owners, and commercial businesses alike; and
13. **WHEREAS**, the Municipality, pursuant to the Act and the Garden State C-PACE Program Guidelines and Supplemental Guidelines, as may be amended from time to time (collectively the “Program Guidelines”), does hereby declare its commitment to opt in and participate in the Garden State C-PACE Program and to enter into a Garden State Program Agreement with the Authority; and,
14. **WHEREAS**, the Municipality further declares that participating in the Garden State C-PACE Program is a valid public purpose; and,
15. **WHEREAS**, if and to the extent there is any inconsistency between this Ordinance and the Act or Program Guidelines, this Ordinance shall be construed consistently with the provisions and requirements of the Act and the Program Guidelines and in case of conflict the Act and the Program Guidelines shall control.

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, deletions noted in strikethrough):

SECTION ONE: AN ORDINANCE REPLACING CHAPTER 177, ARTICLE II OF THE HOBOKEN CITY CODE IN ITS ENTIRETY TO ESTABLISH THE GARDEN STATE COMMERCIAL PROPERTY ASSESSED CLEAN ENERGY (C-PACE) PROGRAM TO FACILITATE THE FINANCING OF C-PACE PROJECTS

Article VII. GARDEN STATE COMMERCIAL PROPERTY ASSESSED CLEAN ENERGY (C-PAP) PROGRAM

§177-2. Scope and Purpose; Approval of Certain C-PACE Project Documents

A. Pursuant to the Act, this Ordinance shall constitute the Municipality’s “opt-in” ordinance that authorizes participation in the Garden State C-PACE Program, which shall be available to Eligible Properties situated within the Municipality and authorizes execution of a Garden State Program Agreement.

B. The Municipality shall accept C-PACE Projects in accordance with the Garden State Program Agreement to be entered into with the Authority.

C. In accordance with the Act, the Municipality shall levy, bill, collect, remit, and enforce C-PACE Assessments with respect to participating Eligible Properties located within the Municipality.

D. The Mayor or any of their designees in writing are designated as the “Authorized Officers” for purposes of executing and delivering the various agreements and documents authorized by this Ordinance.

E. An Authorized Officer is hereby authorized and directed to enter into the Garden State Program Agreement with the Authority in substantially the form attached as Exhibit A hereto.

F. An Authorized Officer under the direction of the Mayor or any of their designees is hereby authorized and directed to (i) enter into C-PACE Assessment Agreements, Notices of Assessment, and any other Uniform Assessment Documents with Eligible Owners, and arrange for the recording of such documents in the Recording Office of the County; and (ii) enter into Assignment Agreements and any other Uniform Assessment Documents with Qualified Capital Providers, and arrange for the recording of such documents in the Recording Office of the County.

§177-3. Definitions

Such terms and meanings as defined in this Ordinance or in the Program Guidelines shall be applicable to municipal actions and municipal documents required to carry out the purposes of this Ordinance.

§177-4. Criteria For Qualifying A C-PACE Project For A C-PACE Assessment

To qualify for a C-PACE Assessment, a proposed project must meet the criteria in the Program Guidelines for eligibility and have been approved by the Authority.

§177-5. Municipal C-PACE Liaison

The Mayor or any of their designees shall designate a municipal official, who shall be known as the “Municipal C-PACE Liaison,” to serve as the Municipality’s liaison to the Garden State C-PACE Program. The Municipality shall have a designated Municipal C-PACE Liaison at all times during the Municipality’s participation in the Garden State C-PACE Program. The Municipal C-PACE Liaison shall be or become qualified as described in the Garden State Program Agreement and shall have the responsibilities and obligations set forth in the Garden State Program Agreement.

§177-6. Municipal C-PACE Fees; Recording of C-PACE Project Documents

Municipal C-PACE fees and the recording of Uniform Assessment Documents for a C-PACE Project shall be as set forth in the Garden State Program Agreement. The amount of any fee shall not be revised without providing prior written notice to the Authority, and shall not exceed the amount set forth in the Program Guidelines. Any increase in the amount of a fee shall not apply retroactively to any prior fee paid for which a completed C-PACE Project application was submitted but shall apply to all prospective fees for all C-PACE Projects, including any C-PACE Project with an existing C-PACE Assessment.

§177-7. Forms of Uniform Assessment Documents and Related Documents

A. All Uniform Assessment Documents, financial documents, or other documents in the form set forth in the Uniform Assessment Documents to be entered into between the Municipality and an Eligible Owner or a Qualified Capital Provider shall be subject to review by the Mayor or any of their designees to determine their substantive adherence to the forms as set forth in the Uniform Assessment Documents and shall be approved by resolution of the governing body, prior to execution of any such documents. All C-PACE Project Documents, such other Uniform Assessment Documents, and other related documents to be entered into in connection with the Garden State C-PACE Program, shall be in compliance with the Act, this Ordinance, the Garden State Program Agreement, and the Program Guidelines.

B. All final documents to be executed by the Municipality in connection with its participation in the Garden State C-PACE Program shall be subject to review and approval by the Municipal Attorney.

§177-8. Acceptance of Projects

A. Pursuant to Section 1 of this Ordinance, the Municipality hereby agrees to accept C-PACE Projects pursuant to the Garden State C-PACE Program in accordance with the Act, the Program Guidelines, and the Garden State Program Agreement entered into with the Authority.

B. All C-PACE Projects and Eligible Owners shall have satisfied the criteria set forth in Section 3 of this Ordinance.

§177-9. Collection, Enforcement and Remittance

A. If any payment of a C-PACE Assessment is not made when that payment shall have become due, or later, consistent with any grace period provided or extended by the Municipality for the payment of property tax bills as may be permitted or required by law, the Municipality shall impose interest thereon ("statutory interest") at the same rate as may be imposed upon unpaid property taxes in the Municipality. Such statutory interest shall be in addition to any accrued interest and any amount fixed as a penalty for delinquency pursuant to the Direct Financing Agreement.

B. All delinquent payments of C-PACE Assessments, together with statutory interest thereon, accrued interest, and any penalties for such delinquency, shall be collected and enforced in the same manner as unpaid property taxes, which may include accelerated tax sales. The proceeds of the tax sale shall also pay the outstanding past unpaid amounts of the C-PACE Assessment. The remaining balance not delinquent on a C-PACE Assessment shall not be subject to acceleration or extinguishment in the event of a default in payment.

C. Any statutory interest collected by the Municipality on a delinquent C-PACE Assessment shall be retained by the Municipality. Any accrued interest, or any amount fixed as a penalty for delinquency pursuant to the Direct Financing Agreement shall be remitted to the Qualified Capital Provider.

D. If a Property Owner is delinquent on a C-PACE Assessment as well as delinquent on taxes, charges, or other assessments, the Municipality shall apply any payment made by the Property Owner to any and all such other delinquencies before being applied to any delinquent C-PACE Assessment.

E. In the event that any lien on an Eligible Property shall be exposed to tax sale, pursuant to the “tax sale law,” N.J.S.A. 54:5-1 et seq., and is struck off and sold to the Municipality, the C-PACE Assessment shall survive any subsequent action to foreclose the right of redemption and continue as a first lien upon the real estate described in the C-PACE Assessment, paramount to all prior or subsequent alienations and descents of the real estate or encumbrances, except subsequent taxes, charges, or other assessments.

F. While the Municipality holds the lien or owns the Eligible Property, the Municipality shall not be responsible for or required to make any payment from its treasury or any other source in furtherance of or to satisfy the C-PACE Assessment.

G. The Municipality shall not bear any other responsibility in furtherance or satisfaction of a C-PACE Assessment, except that a Qualified Capital Provider may seek to compel the Municipality to enforce a lien through an action to foreclose.

H. The Municipality’s appropriate administrative personnel are authorized to make payments to the Qualified Capital Provider or its designee in accordance with the Assignment Agreement without the necessity of prior approval from the governing body, in accordance with N.J.S.A. 40A:5-17 and the appropriate provisions of the Local Fiscal Affairs Law, N.J.S.A. 40A:5-1 et seq.

§177-10. Public Funds Not To Be Utilized To Pay Delinquent Assessment

A. The Municipality shall not be responsible for or required to make any payment from its funds or any other source of public funds in furtherance of or to satisfy the C-PACE Assessment.

B. This Ordinance shall not be construed to confer any right of action or property interest upon any party participating in a C-PACE transaction with the Municipality, nor shall it be interpreted to pledge, offer, or encumber the full faith and credit of the Municipality for any C-PACE lien or C-PACE Assessment.

§177-11. Revenue From The C-PACE Assessment Not A Part of General Fund

A. The C-PACE Assessment in respect of a C-PACE Project shall be assigned directly by the Municipality, and any assignee thereof, to the Qualified Capital Provider with respect to such C-PACE Project, as security for the Direct Financing.

B. Such assignment shall be an absolute assignment of all of the Municipality’s right, title, and interest in and to the C-PACE Assessment, except for its obligations to levy, bill, collect, remit, and enforce C-PACE Assessments. The proceeds of a C-PACE Assessment shall be considered “special revenues” owned by the Qualified Capital Provider pursuant to chapter 9 of the federal bankruptcy code, U.S.C. Title 11.

C. Pursuant to N.J.S.A. 34:1B-378, C-PACE Assessments assigned shall not be included in the Municipality's general funds, or be subject to any laws regarding the receipt, deposit, investment, or appropriation of public funds, and shall retain such status notwithstanding enforcement of the C-PACE Assessment by the Municipality or its assignee.

D. If the Municipality is otherwise subject to tax or revenue sharing pursuant to law, the C-PACE Assessments shall not be considered part of the tax or revenue sharing formula or calculation of municipal revenues for the purpose of determining whether the Municipality is obligated to make payment to, or receive a credit from, any tax sharing or revenue sharing pool. However, the redemption of any delinquent and unpaid C-PACE Assessments, including any interest, penalties, or other charges related thereto, shall be paid no later than on the first available tax bill after the property has been sold after an action to foreclose the right of redemption.

§177-12. Independent Sections, Conflicts & Effective Date

A. Each section of this Ordinance is an independent section, and the holding of any section or part thereof to be unconstitutional, void, invalid or ineffective for any cause shall not be deemed to affect the validity or constitutionality of any other section or parts thereof which shall survive in full force and effect.

B. All ordinances and parts of ordinances that conflict with or that are inconsistent with this Ordinance are hereby repealed but only to the extent of such conflict or inconsistency.

C. This Ordinance shall take effect after final adoption and approval following publication in accordance with law.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect. The remaining sections of Chapter 177 shall be renumbered accordingly to maintain proper sequence.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remain in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	Adopted [Unanimous]
SPONSOR:	Tiffanie Fisher
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

B-786

ORDINANCE AMENDING CHAPTER 192 PARKING FOR PERSONS WITH DISABILITIES (COUNCIL MEMBER JABBOUR)

1. **WHEREAS**, Chapter 192 of the Hoboken City Code includes regulations for parking spaces for persons with disabilities; and,
2. **WHEREAS**, §192-4(A) designates the parking spaces for persons with disabilities specifically approved to park in a reserved on-street parking space; and,
3. **WHEREAS**, the applications below have been reviewed by the Pain & Disability Institute.

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, deletions noted in strikethrough):

SECTION ONE: AMENDMENTS TO HOBOKEN GENERAL CODE CHAPTER 192, §192-4, TO ADD DESIGNATED PARKING SPACES FOR PERSONS WITH DISABILITIES

§192-4 Enumeration of spaces.

- A. Pursuant to the authority granted to the City of Hoboken by N.J.S.A. 39:4-205, the following locations are hereby designated as restricted parking spaces for use by persons who have been issued special vehicle identification cards by the motor vehicle commission. No other person shall be permitted to park in these spaces.

SL, 227 Adams Street (east side of Adams Street, beginning at a point 126 feet south of the southern curbline of Third Street and extending 22 feet southerly therefrom)

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	Adopted [Unanimous]
SPONSOR:	Emily Jabbour
SECOND:	James Doyle
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

B-787

ORDINANCE TO AMEND CHAPTER 190 ENTITLED "VEHICLES AND TRAFFIC" TO RELOCATE A LOADING ZONE ON HUDSON PLACE AND EXTEND BUS STOP HOURS ON HUDSON STREET (**COUNCIL MEMBER JABBOUR**)

1. **WHEREAS**, Chapter 190 of the Hoboken City Code regulates vehicles and traffic on public streets in Hoboken; and,
2. **WHEREAS**, §190-11 includes the locations, effective hours, and time limits of loading zones in Hoboken; and,
3. **WHEREAS**, §190-13 designates bus stop locations and hours in Hoboken; and,

4. **WHEREAS**, loading zones provide dedicated space for residential and commercial deliveries, reducing the safety risks associated with illegally parked delivery vehicles blocking crosswalks, bicycle lanes, and vehicle travel lanes; and,
5. **WHEREAS**, construction related to the ongoing redevelopment and utility improvements around Hoboken Terminal has already displaced or will soon require displacement of various high-demand curbside uses such as loading zones, taxi passenger pick up and drop off zones, and a bus stop that serves evening weekday commuters; and,
6. **WHEREAS**, the City's Department of Transportation & Parking recommends the following amendment to Chapter 190 to accommodate these curbside uses; and,
7. **WHEREAS**, this amendment will relocate curbside space for loading zones that serve businesses and residents on Hudson Place and Hudson Street, freeing up space on the south side of Hudson Place to accommodate a taxi pick-up and drop-off zone displaced due to ongoing infrastructure upgrades and the upcoming Hoboken Connect redevelopment project; and,
8. **WHEREAS**, this amendment will also extend the hours of a bus stop to serve commuters taking shuttles from Hoboken Terminal from 4:00 PM to 9:00 PM on weekdays. The bus stop that previously served these commuters is inaccessible due to construction related to the Hoboken Connect redevelopment project.

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, deletions noted in strikethrough):

SECTION ONE: AMENDMENT TO CHAPTER 190 TO RELOCATE LOADING ZONE ON HUDSON PLACE AND EXTEND BUS STOP HOURS ON HUDSON STREET

§190-11 Loading zones designated

NAME OF STREET	TIMES	SIDES	LOCATION	TIME LIMIT
Hudson Street	8:00 a.m. to 5:00 p.m. Monday through Saturday <u>10:00 a.m. to 4:00 p.m.</u>	East	Beginning at a point 44 feet from the northern curblane of Hudson Place, extending 50 <u>95</u> feet northerly therefrom	20 minutes
Hudson Place	10:00 a.m. to 4:00 p.m. Monday through Friday	South	Beginning at a point 55 feet east of the easterly curblane of Hudson Street and extending 40 feet easterly therefrom	20 minutes

Hudson Street	10:00 a.m. to 6:00 p.m. <u>4:00 p.m.</u> Monday through Friday	West	Beginning at a point 55 feet south of the southern curbline of Newark Street and extending 30 feet southerly therefrom	15 minutes <u>20 minutes</u>
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§190-13 Bus stops designated

E. Hudson Street (H.C. Rd. No. 679), southbound, on the westerly side at:

Street / Location	Hours / Days
Newark Street (far side), beginning at a point 55 feet south of the southern curbline of Newark Street and extending 113 feet southerly therefrom	6:00 a.m. to 10:00 a.m. and <u>4:00 p.m. to 9:00 p.m.</u> Monday to Friday

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	Adopted [Unanimous]
SPONSOR:	Emily Jabbour
SECOND:	James Doyle
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

B-788

ORDINANCE OF THE CITY OF HOBOKEN APPROVING AN APPLICATION FOR A LONG TERM TAX EXEMPTION AND AUTHORIZING THE EXECUTION OF A FINANCIAL AGREEMENT BETWEEN THE CITY OF HOBOKEN AND JB112 URBAN RENEWAL, LLC (**COUNCILMAN COHEN**)

1. **WHEREAS**, the City of Hoboken (the “City”) is a public body corporate and politic of the State of New Jersey; and,
2. **WHEREAS**, the Local Redevelopment and Housing Law, N.J.S.A. 40A:12A-1, et seq., as amended and supplemented (the “Redevelopment Law”), authorizes municipalities to participate in the redevelopment and improvement of areas in need of redevelopment; and,
3. **WHEREAS**, by Ordinance of the City Council of the City of Hoboken (the “City Council”), the Redevelopment Plan for the Western Edge (the “Redevelopment Plan”) was adopted on August 5, 2015, which sets forth the plan for the Western Edge Redevelopment Area (the “Redevelopment Area”); and,
4. **WHEREAS**, Just Block 112, LLC has proposed and secured permitting for the development of a certain parcel within the Redevelopment Area known as Block 112, Lot 1.01 (the “Property”), with 357 residential units, 24,587 square feet of retail space, and associated parking (the “Project”), all as described more clearly in the Amended and Restated Redevelopment Agreement dated October 21, 2020 (the “Redevelopment Agreement”), which describes the redevelopment of the Property; and,
5. **WHEREAS**, Just Block 112, LLC has advised the City of the transfer of its interests in the Property to JB112 Urban Renewal, LLC (the “Entity”), which entity is the now owner of the Property; and,

6. **WHEREAS**, in accordance with the Long Term Tax Exemption Law, N.J.S.A. 40A:20-1 et seq., (the “Exemption Law”) the Entity has filed an application (the “Application”) with the City for approval of a long term tax exemption (the “Long Term Tax Exemption”) for the Project, a copy of which is on file with the City Clerk, seeking a tax exemption in connection with the Project, in exchange for which the Entity proposes to make payments to the City in lieu of taxes; and,
7. **WHEREAS**, the Entity also submitted to the City a form of financial agreement referenced in the Application, establishing the rights, responsibilities and obligations of the Entity; and,
8. **WHEREAS**, the Mayor submitted the Application, and the financial agreement attached hereto as Exhibit A (the "Financial Agreement") to the City Council with his recommendation for approval, a copy of which recommendation is on file with the City Clerk; and,
9. **WHEREAS**, the City Council has determined that the Project represents an undertaking permitted by the Exemption Law, and hereby finds that the relative benefits of the Project justify the Long Term Tax Exemption requested in the Application; and,
10. **WHEREAS**, the City Council has reviewed the Application and has made the following findings:
 - A. Benefits of Project v. Costs:
 - i. The development and construction of the Project, as set forth in the Redevelopment Agreement and Redevelopment Plan, will be beneficial to the overall community; will achieve the goals and objectives of the Redevelopment Plan; will help revitalize the Property; will improve the quality of life for the community through the provision of Affordable Housing Units (as defined in the Redevelopment Agreement), implementation of infrastructure, including roadway and sidewalk improvements, provision of open space, pedestrian, vehicular and bicycle improvements, new ratables, enhanced resiliency initiatives on the Property and contributions toward the costs associated with the adjacent Resiliency Park, and environmental remediation of the Property; will serve as a catalyst for further private investment in areas surrounding the Property; and will enhance the economic development of the City.

- ii. It is anticipated that the development of the Project will create approximately 1,000 direct construction jobs during the temporary phase and approximately 5 permanent jobs.
- iii. Pursuant to the Financial Agreement, the Project is projected to generate revenue for the City in the first year well in excess of the municipal revenue generated by ad valorem taxes in 2024. The benefits to the City accruing as a result of the Project, including the generation of jobs, the revitalization and environmental remediation of the Property, and the generation of municipal revenues, will substantially outweigh any incremental costs to the City resulting from the Long Term Tax Exemption granted herein.

B. Importance of Long Term Tax Exemption. The City Council's approval of the Long Term Tax Exemption is essential to the success of the Project because:

- i. The relative stability and predictability of the Annual Service Charge associated with the Project will make it more attractive to financial institutions whose participation is necessary in order to finance the Project.
- ii. The relative stability and predictability of the Annual Service Charge will allow the Entity to provide a high level of maintenance for the Property and will have a positive impact on the surrounding area and community.
- iii. The financial benefit conferred by the Long Term Tax Exemption is a critical incentive for the Entity to undertake the Project due to the extraordinary costs associated with the development of the Project. In light of market conditions and other economic factors impacting this Project, it is not financially feasible to undertake the development of this Project in the absence of the Long Term Tax Exemption. For this reason, it is critical for the Entity that it receives the Long Term Tax Exemption.
- iv. The City Council has determined that the Project will result in significant economic and societal benefits and that such benefits are far greater to the City than the costs, if any, associated with the Financial Agreement.

NOW, THEREFORE, BE IT ORDAINED AND ENACTED, by the City Council of the City of Hoboken in the County of Hudson, State of New Jersey as follows:

SECTION 1. General. The aforementioned recitals are incorporated herein as though fully set forth at length.

SECTION 2. Execution of Financial Agreement Authorized.

(a) The Mayor is hereby authorized and directed to execute the Financial Agreement, substantially in the form as it has been presented to the City Council, and attached hereto as Exhibit A, subject to additions, deletions, modifications, or revisions deemed necessary and appropriate in consultation with counsel to the City.

(b) The City Clerk is hereby authorized and directed, upon the execution of the Financial Agreement in accordance with the terms of Section 2(a) hereof, to attest to the signature of the Mayor upon such document and is hereby further authorized and directed to affix the corporate seal of the City upon such document.

(c) The City Clerk shall file certified copies of this Ordinance and the Financial Agreement with the Tax Assessor of the City. Within ten calendar days following the later of the effective date of this Ordinance or the execution of the Financial Agreement by the Entity, the City Clerk also shall transmit a certified copy of this Ordinance and the Financial Agreement to the chief financial officer of Hudson County for informational purposes.

SECTION 3. Severability. If any part of this Ordinance shall be deemed invalid, such parts shall be severed and the invalidity thereby shall not affect the remaining parts of this Ordinance.

SECTION 4. Action Regarding Financial Agreement. The Mayor is hereby authorized and directed to determine all matters and terms in connection with the Financial Agreement, all in consultation with the counsel to the City, and the manual or facsimile signature of the Mayor upon any documents shall be conclusive as to all such determinations. The Mayor, the City Business Administrator, the Chief Financial Officer, the City Clerk and any other City official, officer or professional, are each hereby authorized and directed to execute and deliver such documents as are necessary to facilitate the transactions contemplated hereby, and to take such actions or refrain from such actions as are necessary to facilitate the transactions contemplated hereby, in consultation with counsel, and any and all actions taken heretofore with respect to the transactions contemplated hereby are hereby ratified and confirmed. The City Clerk shall file certified copies of this ordinance and the Financial Agreement with the Tax Assessor of the City.

Additionally, within ten (10) calendar days following the later of the effective date of this ordinance or the execution of the Financial Agreement by the Entity, the City Clerk shall also transmit a certified copy of this ordinance and the Financial Agreement to the chief financial officer of Hudson County and to the Hudson County Counsel for informational purposes.

SECTION 5. Availability of the Ordinance. A copy of this Ordinance shall be available for public inspection at the offices of the City.

SECTION 6. Effective Date. This Ordinance shall take effect according to applicable law.

RESULT:	Adopted
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Jabbour, Presinzano, Quintero, Russo, Doyle
PRESENT:	Fisher
ABSENT:	Ruben Ramos

B-789

AN ORDINANCE TO AMEND THE CITY CODE OF THE CITY OF HOBOKEN CHAPTER 59A ENTITLED “DEPARTMENT OF PUBLIC SAFETY,” ARTICLE II, §59A-8 “ESTABLISHMENT OF DIVISION” TO INCREASE THE POLICE DEPARTMENT TABLE OF ORGANIZATION (**COUNCILMAN QUINTERO**)

THE MAYOR AND COUNCIL OF THE CITY OF HOBOKEN DO HEREBY ORDAIN AS FOLLOWS:

SECTION 1: The following additions and ~~deletions~~ shall be made to Hoboken City Code Chapter 59A-8 to read as follows:

§ 59A-8 Establishment of Division.

A Division of Police in the Department of Public Safety is hereby established in and for the City of Hoboken, which shall not exceed the following sworn personnel:

Rank/Position	Number
Chief	1
Captains	5 7

Rank/Position	Number
Lieutenants	44 16
Sergeants	26 28
Police Officers	110 118

Section 2: This Ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this Ordinance codified and incorporated in the official copies of the Code.

Section 3: The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

Section 4: This ordinance shall take effect as provided by law.

Section 5: All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only however, to the extent of such conflict or inconsistency, it being the legislative intent that all ordinances or part of ordinances now existing or in effect unless the same being conflict or inconsistent with any provision of this Ordinance shall remain in effect. This Ordinance shall also supersede any inconsistent provisions contained in any resolution or ordinance previously adopted by the Hoboken City Council.

Section 6: The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

Section 7: This Ordinance shall take effect upon passage and publication as provided by law.

Members of the public who spoke: Dini Ajmani

RESULT:	Adopted [6 to 2]
SPONSOR:	Joe Quintero
SECOND:	Emily Jabbour
AYES:	Cohen, Jabbour, Quintero, Ramos, Russo, Doyle
NAYS:	Tiffanie Fisher, Paul Presinzano

PUBLIC COMMENTS ON AGENDA ITEMS

Members of the public who spoke: Cheryl Fallick, Manuel Rivera Soler, Mary Ondrejka, Linda Cappiello

CONSENT AGENDA

Consent Agenda defined: All items listed with an asterisk (*) are considered to be routine business by the City Council and will be enacted by one motion. There will be no separate discussion on these items unless a council member or citizen so requests, in which event the item will be removed from the general order of business and considered in its normal sequence on the agenda.

PETITIONS AND COMMUNICATIONS

PROCLAMATION FROM MAYOR BHALLA DATED MAY 15, 2025 THANKING JOEL AND MARILYN FREISER FOR THEIR PROFOUND IMPACT ON THE CIVIL, CULTURAL AND EDUCATIONAL LIFE OF OUR COMMUNITY AND INSPIRING OTHERS TO BE KIND AND STRENGTHEN OUR COMMUNITY

25-540

MEMO FROM MAYOR BHALLA DATED JUNE 23, 2025 APPOINTING CHRISTOPHER SZENTMIKLOS TO THE HOBOKEN PLANNING BOARD

25-541

MISCELLANEOUS LICENSES

REPORTS FROM CITY OFFICERS

25-542

REPORT FROM MUNICIPAL TAX COLLECTOR SHARON CURRAN FOR TAXES
COLLECTED FOR THE MONTH OF JUNE 2025AS \$2,396,383.61 (ABATEMENT
TOTALS- \$26,784.61)

25-543

REPORT FROM THE MUNICIPAL COURT INDICATING RECEIPTS COLLECTED FOR
THE MONTH OF JUNE 2025 AS \$758,352.18

25-544

TAX BILL

CLAIMS

25-545

TOTAL FOR THIS AGENDA: \$11,284,889.66

PAYROLL

25-546

PAYROLL REPORT JUNE 25, 2025

RESOLUTIONS

PAYROLL	O/T PAY	OTHER PAY
\$2,177,298.99	\$133,142.59	\$292,522.48
TOTAL		
\$2,602,964.06		

Finance Department

RESOLUTION TO ADOPT THE CY2025 BUDGET

25-547

RESOLUTION AUTHORIZING EMERGENCY TEMPORARY APPROPRIATIONS IN
ACCORDANCE WITH N.J.S.A. 40A:4-20 (**COUNCILMAN COHEN**)

1. **WHEREAS**, an emergent condition has arisen in that the City of Hoboken is expected to enter into contracts, commitments or payments prior to the adoption of the CY2025 budget and no adequate provision has been made in the CY2025 temporary appropriations for the aforesaid purposes; and,
2. **WHEREAS**, N.J.S.A. 40A:4-20 provides for the creation of an emergency temporary appropriation for said purpose; and,
3. **WHEREAS**, the total emergency temporary appropriation resolutions adopted in CY2025 pursuant to the provisions of N.J.S.A. 40A:4-20 including this resolution total \$35,015,027.84 for the Current Fund, \$4,648,597.00 for the Parking Utility, and \$3,429,708.00 for the Water Utility.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, County of Hudson, State of New Jersey (**not less than two-thirds of all the members thereof affirmatively concurring**) that in accordance with the provisions of N.J.S.A. 40A:4-20:

1. Emergency temporary appropriations are hereby authorized in the amounts specified in the attached schedule, which is incorporated by reference into this resolution.
2. Said emergency temporary appropriations will be provided for in the CY2025 budget.
3. That the City Clerk shall file one copy of this resolution with the Director, Division of Local Government Services.

RESULT:	Adopted [6 to 2]
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Quintero, Ramos, Doyle
NAYS:	Paul Presinzano, Michael Russo

Administration

25-548

RESOLUTION AMENDING THE CONTRACT WITH MILLENNIUM STRATEGIES, LLC
FOR GRANT WRITING SERVICES IN THE INCREASED AMOUNT OF \$5,000
(COUNCILMAN COHEN)

1. **WHEREAS**, pursuant to Resolution No. 25-23 dated January 8, 2025, the City Council previously awarded a contract to Millennium Strategies LLC (“Millennium”) for grant writing services in amount of \$68,000; and,
2. **WHEREAS**, Millennium offers GranTrack, a transformative grant management tool designed to help local governments proactively manage, centralize, and organize every aspect of the grant award management process from initial award notification to the last dollar spent; and,
3. **WHEREAS**, GranTrack is equipped with a variety of interactive tools and features designed to optimize the organization and workflow when managing grant awards; and,
4. **WHEREAS**, an annual subscription to GranTrack is included in the services authorized pursuant to Resolution No. 23-23; and,
5. **WHEREAS**, an amendment to the contract in the increased amount of \$5,000.00 is necessary to migrate the City’s data including all open and pending grant records to GranTrack; and,
6. **WHEREAS**, the Administration recommends amending the contract with Millennium for grant writing services in the increased amount of \$5,000.00 for data migration, for a new total contract amount of \$73,000.00.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken as follows:

- 1) The contract with Millennium shall be increased by \$5,000.00 for a new total contract amount of \$73,000.00; and,
- 2) Aside from the change in contract amount, the remainder of the terms shall be in accordance with the original agreement and all attachments thereto; and,

- 3) The Mayor or his designee is hereby authorized to take the necessary steps to enter into an amendment to the contract and any other steps necessary to effectuate this resolution; and,
- 4) This resolution shall take effect immediately.

RESULT:	Adopted [Unanimous]
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-549

RESOLUTION APPROVING A CONTRACT BETWEEN THE CITY OF HOBOKEN AND DWAYNE GRETZKY (COUNCILMAN COHEN)

1. **WHEREAS**, the City of Hoboken is hosting the Fall Arts and Music Festival on Sunday September 28, 2025, and is in need of a musical act for the Observer Highway Stage; and,
2. **WHEREAS**, the City wishes to have Dwayne Gretzky perform at the Fall Arts and Music Festival on the Observer Highway Stage; and,
3. **WHEREAS**, the cost for a performance by Dwayne Gretzky is \$12,000.00; and,
4. **WHEREAS**, the Administration and Department of Cultural Affairs recommend awarding a contract to Dwayne Gretzky in the amount of \$12,000.00 for her performance at the Fall Arts and Music Festival.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken that a contract is hereby awarded to Dwayne Gretzky in the amount of \$12,000.00, to be paid as follows: \$6,000.00 (50%) due by July 21, 2025, and the remaining balance of \$6,000.00 to be paid by September 28, 2025; and,

BE IT FURTHER RESOLVED, that immediate payment for the Dwayne Gretzky performance is authorized and after the proper purchasing entries are made the final check, made out to Dwayne Music Inc, shall be given to the Head of Cultural Affairs to hand deliver to the performer at the Fall 2025 Arts and Music Festival; and:

1. The award of this contract is subject to finalization of the contract terms to be drafted and approved by Corporation Counsel; and,
2. Any contract amendments which may become necessary shall be subject to the City's ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council; and,
3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution; and,
4. The Mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

Dwayne Music, Inc c/o Atomic Music Group
638 Lindero Canyon Road Suite 261
Oak Park, CA 91377

RESULT:	Adopted [Unanimous]
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

Climate Action and Innovation

25-550

RESOLUTION AMENDING HOBOKEN'S NOISE CONTROL ORDINANCE WAIVER FOR LCOR HOBOKEN CONNECT PROJECT SITE 1 & HUDSON PLACE IMPROVEMENTS (COUNCIL MEMBER FISHER)

1. **WHEREAS**, LCOR has hired general contractor, Hunter Roberts Construction Group ("Hunter Roberts"), for the construction of the mixed-use office building for the Hoboken Connect Project Site 1, associated utility improvements in the right-of-way, and the Hudson Place Improvement project; and,
2. **WHEREAS**, on behalf of Hunter Roberts, LCOR requested a waiver from the workday, activity, and noise control requirements set forth in Hoboken City Code §133-9(C) to allow for construction work between the hours of 9:00 p.m. and 5:00 a.m. ("overnight") and between the hours of 6:00 p.m. and 8:00 p.m. ("after hours") to be used on an as-needed basis in coordination with the Office of the City Engineer, Hoboken OEM, Hoboken Police

Traffic Commander, and Department of Transportation and Parking, until project completion; and,

3. **WHEREAS**, the scope of work associated with this waiver includes right-of-way improvements such as stormwater/drainage improvements, multiple utility connections (i.e. domestic, fire, sanitary), milling and paving operations, streetscape, etc.; and,
4. **WHEREAS**, this work shall be performed overnight and after hours to minimize traffic impacts; and,
5. **WHEREAS**, the City of Hoboken has granted approval of the Noise Waiver Request by resolution on June 4, 2025; Resolution No. 25-466; and,
6. **WHEREAS**, LCOR also requested a waiver to allow construction work on Saturdays as needed through the end of the project between the hours of 9:00 a.m. and 4:00 p.m. as shown on the original request letter from LCOR dated May 28, 2025; not originally included and approved on Resolution No. 25-466; and,
7. **WHEREAS**, this authorization will supplement Resolution No. 25-466 to include the request to work Saturdays as needed through the end of the project between the hours of 9:00 a.m. and 4:00 p.m.; and,
8. **WHEREAS**, Hoboken City Code §133-9(C) states “All construction and demolition activity, excluding emergency work, shall not be performed between the hours of 6:00 p.m., and 8:00 a.m. on weekdays or at any time during weekends and federal holidays”; and,
9. **WHEREAS**, pursuant to §133-9(C)(1)-(3), the City Council of the City of Hoboken may waive some or all of the provisions of this section upon written request; and,
10. **WHEREAS**, the attached request from LCOR has been reviewed by the Office of the City Engineer, Hoboken OEM, Hoboken Police Traffic Commander, and Department of Transportation and Parking; and,

11. **WHEREAS**, the City Council recognizes that it is appropriate in accordance with the factors delineated in §133-9(C)(1)-(3) to authorize an extension of the normal construction hours and days allowed under §133-9(C) for the above referenced work to be performed during the days, times, and instances delineated above for the duration of the construction project.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, in accordance with §133-9(C)(1)-(3), that the contractor for the Hoboken Connect Project Site 1 managed by LCOR and contractor Hunter Roberts Construction Group may perform construction activities within the City of Hoboken during extended hours outlined above.

RESULT:	Adopted [Unanimous]
SPONSOR:	Tiffanie Fisher
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-551

RESOLUTION AMENDING HOBOKEN'S NOISE CONTROL ORDINANCE WAIVER FOR LCOR HOBOKEN CONNECT PROJECT SITE 2 (COUNCIL MEMBER FISHER)

1. **WHEREAS**, the ongoing LCOR Hoboken Connect Project Site 2 will require work on Saturdays and Holidays to meet the expected completion date in April 2027; and,
2. **WHEREAS**, Consigli Construction Company provided the City of Hoboken with a letter requesting to waive the noise ordinance dated March 4, 2025, to mitigate potential issues that arise from inclement weather and other delays; and,
3. **WHEREAS**, Consigli Construction Company has requested permission to work on Saturdays and Holidays; and,
4. **WHEREAS**, the City of Hoboken has granted approval of the Noise Waiver Request by resolution on April 2, 2025; Resolution No. 25-286; and,
5. **WHEREAS**, Consigli Construction Company additionally requests a waiver to allow extended construction working hours (6:00 PM to 8:00PM) as needed Monday through Friday; and,

6. **WHEREAS**, Consigli Construction Company additionally requests a waiver to allow overnight working hours from 9:00PM to 5:00AM as needed in coordination with Hoboken OEP; and,
7. **WHEREAS**, Consigli Construction Company additionally requests a waiver to allow scheduled crane assembly and disassembly only for Saturday and Sunday between the hours of 4:00AM and 8:00PM as needed in coordination with Hoboken OEP; and
8. **WHEREAS**, this authorization will supplement Resolution No. 25-286 to include the request to for extended construction working hours (6:00 PM to 8:00PM) as needed Monday through Friday, overnight working hours from 9:00PM to 5:00AM as needed Monday through Friday in coordination with Hoboken OEP, and scheduled crane assembly and disassembly only for Saturday and Sunday between the hours of 4:00AM and 8:00PM as needed in coordination with Hoboken OEP; and,
9. **WHEREAS**, Hoboken City Code §133-9(C) states “All construction and demolition activity, excluding emergency work, shall not be performed between the hours of 6:00 p.m., and 8:00 a.m. on weekdays or at any time during weekends and federal holidays”; and,
10. **WHEREAS**, pursuant to §133-9(C)(1)-(3), the City Council of the City of Hoboken may waive some or all of the provisions of this section upon written request; and,
11. **WHEREAS**, the attached request from Consigli Construction Company has been reviewed by the Construction Official and Business Administrator’s Office; and,
12. **WHEREAS**, the City Council recognizes that it is appropriate in accordance with the factors delineated in §133-9(C)(1)-(3) to authorize an extension of the normal construction hours and days allowed under §133-9(C) for the above referenced work to be performed during the days, times, and instances delineated in the attached and on Saturdays for the duration of the construction project.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, in accordance with §133-9(C)(1)-(3), Consigli Construction Company is granted a waiver from the City of Hoboken’s

noise ordinance as it pertains to the LCOR Hoboken Connect Project Site 2, and they may complete work on Saturdays and the holidays identified in their attached letter.

RESULT:	Adopted [Unanimous]
SPONSOR:	Tiffanie Fisher
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-552

RESOLUTION AMENDING HOBOKEN’S NOISE CONTROL ORDINANCE WAIVER FOR NJDEP REBUILD BY DESIGN HUDSON RIVER PROJECT (COUNCIL MEMBER FISHER)

- 1. **WHEREAS**, the New Jersey Department of Environmental Protection’s (“NJDEP”) Rebuild by Design Hudson River (“RBD-HR”) project involves the construction of various structures and elements within the city of Hoboken to address flooding from major storm surges and high tides as well as heavy rainfall events; and,
- 2. **WHEREAS**, the NJDEP has requested a waiver from select provisions of Hoboken City Code §133-9 to perform the construction operations for RBD-HR’s resist project within the city of Hoboken on limited Saturdays when unforeseen field conditions arise resulting in emergency, time-sensitive work and during certain federal holidays; and,
- 3. **WHEREAS**, the RBD-HR project involves construction activities where subsurface geotechnical conditions, unknown utility locations, and unforeseen issues may arise that necessitate emergency, time-sensitive work on limited Saturdays; and,
- 4. **WHEREAS**, the NJDEP requested a waiver from the work day, activity, and noise control requirements set forth in Hoboken City Code §133-9 (C) to allow all construction operations for the RBH-HR's Resist Alignment scope of work on limited Saturdays between 8:00 a.m. and 6:00 p.m. when such aforementioned unforeseen field conditions arise necessitating emergency, time-sensitive work; and,
- 5. **WHEREAS**, the City Council authorized the aforementioned Noise Waiver Request by way of a resolution dated October 9, 2024; and,
- 6. **WHEREAS**, NJDEP has requested supplementing the authorized Noise Waiver Request

to allow construction work between the hours of 7:00 AM – 11:00 PM Monday through Friday (“weekday mornings and evenings”), 9:00 PM – 5:00 AM Monday through Friday on a limited basis (“weekday overnights”), and 7:00 AM – 4:00 PM on Saturdays and Sundays (“weekends”) as shown on the attached letter from NJDEP; and,

7. **WHEREAS**, per discussion with the City Council Subcommittee, this request was narrowed to:
 - a. 15th Street between Park Avenue and Bloomfield Street (“15th Street closure”) to allow construction on weekday mornings and evenings, and weekends for a duration beginning on or around July 7, 2025 concurrent with the 15th Street closure and associated road opening permit from the City Engineer,
 - b. Park Avenue at 15th Street to allow construction on weekday overnights, and weekends for a duration beginning on or around July 7, 2025 concurrent with the 15th Street closure and associated road opening permit from the City Engineer,
 - c. Henderson Street from the Jersey City municipal boundary to Newark Street/Observer Highway (“Marin Boulevard closure”) to allow construction on weekday mornings and evenings, weekday overnights, and weekends for a duration beginning on or around July 14, 2025 concurrent with the Marin Boulevard closure and associated sidewalk opening permit from the City Engineer; and,
8. **WHEREAS**, the RBD-HR project is proposing these additional work hours outside of the authorized Noise Waiver Request in an attempt to accelerate the future road closure schedule and mitigate any future delays for the project; and,
9. **WHEREAS**, weekday mornings are critical for concrete pouring temperatures during the summer months; and,
10. **WHEREAS**, the contractor shall make every effort to limit noise during these additional work hours; and,
11. **WHEREAS**, significant noise producing activities such as jack-hammering, pile driving, and federally mandated reverse vehicle beeps are not permitted (i.e., vehicles cannot reverse) on 15th Street between Park Avenue and Bloomfield Street between the hours of 7:00 AM – 8:00 AM and 10:00 PM – 11:00 PM; and,

12. **WHEREAS**, this authorization will supplement the prior resolution to include the requested weekday mornings, evenings, and overnights, and weekends for the duration of the 15th Street closure and Marin Boulevard closure as noted above, to be used on an as-needed basis subject to approval by the Business Administrator as outlined in the prior resolution and in coordination with the Office of the City Engineer, Hoboken OEM, Hoboken Police Traffic Commander, and Department of Transportation and Parking; and,

13. **WHEREAS**, Hoboken City Code §133-9(C) states “All construction and demolition activity, excluding emergency work, shall not be performed between the hours of 6:00 p.m., and 8:00 a.m. on weekdays or at any time during weekends and federal holidays”; and,

14. **WHEREAS**, pursuant to §133-9(C)(1)-(3), the City Council of the City of Hoboken may waive some or all of the provisions of this section upon written request; and,

15. **WHEREAS**, the City Council recognizes that it is appropriate in accordance with the factors delineated in §133-9(C)(1)-(3) to authorize an extension of the normal construction hours and days allowed under §133-9(C) for the above referenced work to be performed during the days, times, and instances delineated above for the duration of the construction project.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, in accordance with §133-9(C)(1)-(3), that the contractor for New Jersey Department of Environmental Protection Rebuild by Design Hudson River project may perform construction activities within the City of Hoboken during the extended hours outlined above.

RESULT:	Adopted [Unanimous]
SPONSOR:	Tiffanie Fisher
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-553

RESOLUTION AUTHORIZING THE CITY TO ENTER INTO THE ATTACHED SECOND AMENDMENT TO THE MEMORANDUM OF AGREEMENT WITH THE NEW JERSEY DEPARTMENT OF ENVIRONMENTAL PROTECTION (NJDEP) FOR DESIGN OF THE REBUILD BY DESIGN HUDSON RIVER PROJECT UNDER THE COMMUNITY DEVELOPMENT BLOCK GRANT (CDBG-DR) DISASTER RECOVERY PROGRAM
(COUNCIL MEMBER FISHER)

1. **WHEREAS**, the City and New Jersey Department of Environmental Protection (“NJDEP”) entered into a Memorandum of Agreement (“MOA” or “Agreement”) on April 26, 2019, to delineate and define the parties roles and responsibilities for implementation of the Rebuild by Design Hudson River Project; and,
2. **WHEREAS**, the City Council authorized an amendment to the MOA by way of a resolution dated December 18, 2024, to add provisions regarding the City’s ability and interest in assigning State of New Jersey Green Acres grant funding to the Project in order to accomplish the construction, operation and maintenance of the Cove Park restoration portion of the project; and,
3. **WHEREAS**, the City and NJDEP now seek to modify the MOA to add provisions regarding Article II, subparagraph C., Reimbursement, for costs associated with the acquisition of the perpetual easements needed to construct, operate and maintain the Resist Structure; and,
4. **WHEREAS**, the City and the Department desire to memorialize this Agreement as depicted in the attached second amendment to the MOA; and,
5. **WHEREAS**, the City Council wishes to approve the attached second amendment to the MOA and authorizes its execution.

NOW, THEREFORE, BE IT RESOLVED, that the City Council authorizes the Mayor or his designee to execute the attached second amendment to the Memorandum of Agreement with NJDEP for design of the Rebuild by Design Hudson River Project.

RESULT:	Adopted [Unanimous]
SPONSOR:	Tiffanie Fisher
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-554

RESOLUTION APPROVING A CHANGE ORDER TO THE CITY'S CONTRACT WITH LET IT GROW FOR CONSTRUCTION OF CHURCH SQUARE PARK PHASE 1 IMPROVEMENTS IN THE INCREASED AMOUNT OF \$86,113.92 OR 3.8% INCREASE FROM THE ORIGINAL CONTRACT AMOUNT OF \$2,277,768 FUNDED BY B-395
(COUNCIL MEMBER FISHER)

1. **WHEREAS**, pursuant to a resolution dated December 18, 2024, the City Council awarded a contract to Let it Grow, Inc. ("LIG") for construction of the Church Square Park Phase 1 Improvement project in the amount of \$2,277,768; and,
2. **WHEREAS**, since construction on the project commenced on January 22, 2025, at Church Square Park various unforeseen conditions and scope modifications have necessitated additional work and costs; and,
3. **WHEREAS**, a water main break was discovered during excavation for the sanitary sewer connection on Willow Avenue that forced LIG to terminate its work operations while an emergency watermain contractor remediated the leak, resulting in LIG incurring downtime and loss of production for the day and for re-excavation of the sewer trench; and,
4. **WHEREAS**, in order to provide additional space for root growth and to avoid damaging any large roots of the large London Plane trees along 4th Street, the curb alignment shifted three (3) feet to the south, resulting in LIG removing and disposing of additional concrete sidewalk at an additional cost; and,
5. **WHEREAS**, additional electrical and telecom conduits were placed at locations within the park to be used as spares for lighting poles and internet service to be installed during future phases of Church Square Park improvements, resulting in additional costs for LIG to install the spare conduits; and,
6. **WHEREAS**, there is a need for three (3) new chess tables to be installed within Church Square Park to replace the previous chess tables that were removed during construction of the new playground structure, resulting in additional costs for LIG to procure and install the new chess tables; and,
7. **WHEREAS**, modifications to grading and excavation areas were required to avoid large tree roots in conflict with the proposed curb and footing layouts for the planting beds and playground equipment, resulting in additional costs for LIG to re-work the areas; and,
8. **WHEREAS**, additional bluestone curb was required to be reset along the Willow Ave dog run, resulting in the need to compensate LIG for the additional quantity; and,

9. **WHEREAS**, curb to curb restoration for 50 feet north of the crosswalks on both Willow Avenue and Garden Street will be required per Hudson County permitting requirements as the roads were paved within the past five (5) years, resulting in additional milling and paving work for LIG; and,
10. **WHEREAS**, the City received the attached correspondence from Michael Baker International (MBI) dated June 27, 2025, recommending Change Order No. 1 at a net increase to the contract of \$86,113.92; and,
11. **WHEREAS**, the increase in contract results from the following increases: \$6,942.37 as an allowance for the loss of time and re-work caused by the water main break discovery per PCO 003, \$7,700.03 as an allowance for additional sidewalk concrete removal and disposal per PCO 004, \$2,569.30 as an allowance for the installation of spare conduits as per PCO 006, \$22,252.22 as an allowance for procuring and installing chess tables as per PCO 007, \$10,000.00 as an allowance for exposing re-grading and excavation for the planting bed curbs and playground footings per PCO 008, \$12,150.00 for resetting bluestone curb in excess of contract quantities, and \$24,500.00 as an allowance for the milling and paving in excess of contract quantities; and,
12. **WHEREAS**, it is recommended that the City Council approve Change Order No. 1 at a cost of \$86,113.92 to the City; and,
13. **WHEREAS**, the new total contract amount is \$2,363,881.92, which represents an increase of 3.8% to the original contract amount; and,
14. **WHEREAS**, the Administration recommends approving Change Order No. 1 with LIG at a cost of \$86,113.92; and,

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, that Change Order No. 1 is awarded as delineated above in the amount of \$86,113.92, subject to the following:

1. The award of this change order is subject to finalization of the contract terms, subject to final approval by Corporation Counsel or his designee, consistent with the attached proposed terms.

2. Any contract additional change orders which may become necessary shall be subject to the City's ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council.
3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
4. The Mayor, or his designee, is hereby authorized to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.

RESULT:	Adopted [7 to 1]
SPONSOR:	Tiffanie Fisher
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Quintero, Ramos, Russo, Doyle
NAYS:	Paul Presinzano

25-555

RESOLUTION AMENDING THE PROFESSIONAL SERVICES CONTRACT WITH CDM SMITH IN THE INCREASED AMOUNT OF \$100,000.00 FOR ON-CALL GENERAL WATER ENGINEERING SUPPORT SERVICES CY2025 FUNDED BY THE WATER UTILITY (COUNCIL MEMBER FISHER)

1. **WHEREAS**, Professional Engineering is a professional service as defined in N.J.S.A. 40A:11-5(1)(a)(i) et seq; and,
2. **WHEREAS**, the City of Hoboken requires the services of a professional engineer to provide on-call general water engineering support services; and,
3. **WHEREAS**, CDM Smith has been prequalified pursuant to a resolution dated January 8, 2025, to provide engineering services to the City of Hoboken for CY2025 and has completed up to date "Pay to Play" forms; and,
4. **WHEREAS**, by way of resolution dated January 8, 2025, the City of Hoboken awarded a professional service contract to CDM Smith for on-call general water engineering support services for a term of one (1) year and in the initial amount of \$150,000.00; and,

5. **WHEREAS**, the City has a need for additional general water engineering services, including the continued assistance to Hoboken Water Utility in complying with New Jersey Lead Service Line Replacement regulations, development of the 5-year Capital Plan, water engineering services support for upcoming developer projects, etc.; and,
6. **WHEREAS**, CDM Smith submitted the attached proposal dated July 1, 2025, for the aforementioned additional professional services;
7. **WHEREAS**, the Administration recommends an amendment to the original contract with CDM Smith in the increased amount of \$100,000.00, for a new total contract amount of \$250,000.00, to provide the aforementioned additional water engineering services.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, that the contract CDM Smith on-call general water engineering support services in the initial amount of \$150,000.00, paid at rates ranging from \$315.00 per hour for Senior Technical Advisor to \$125.00 per hour for Field Technician, shall be amended in the increased amount of \$100,000.00 for a new total contract amount of \$250,000.00, for a term of one (1) year; and:

1. The award of this contract is subject to finalization of the contract terms to be drafted and approved by Corporation Counsel.
2. Any contract amendments which may become necessary shall be subject to the City's ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council.
3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
4. The Mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

CDM Smith
110 Fieldcrest Avenue, #8
6th Floor
Edison, NJ 08837

RESULT:	Adopted [Unanimous]
SPONSOR:	Tiffanie Fisher
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-556

RESOLUTION AWARDING A PROFESSIONAL SERVICES CONTRACT IN THE AMOUNT NOT TO EXCEED \$168,800.00 TO CDM SMITH FOR DESIGN SUPPORT SERVICES OF PRESSURE MITIGATION PROJECT FUNDED BY THE WATER UTILITY (B-719) (COUNCIL MEMBER FISHER)

1. **WHEREAS**, engineering is a professional service as defined in N.J.S.A. 40A:11-5(1)(a)(i) et seq; and;
2. **WHEREAS**, the City of Hoboken issued Request for Qualifications 24-27 seeking qualified professionals for Architect, Engineer, Landscape Architect, LSRP, Planner and Surveyor; and,
3. **WHEREAS**, CDM Smith has been prequalified pursuant to a resolution dated January 8, 2025, to provide engineering services to the City of Hoboken for CY2025; and,
4. **WHEREAS**, the Office of the City Engineer requires design support services throughout construction for the Pressure Mitigation Project; and,
5. **WHEREAS**, the Pressure Mitigation Project consists of the installation of pressure control valves at the existing Jersey City interconnection at Newark and Harrison Streets and a new interconnection with Jersey City on Henderson Street; and,
6. **WHEREAS**, CDM Smith submitted a proposal dated July 1, 2025, for Design Support Services for the Pressure Mitigation Project; and,
7. **WHEREAS**, the Office of the City Engineer recommends awarding a contract to CDM Smith for design support services in the amount of \$168,800.00 subject to approval of the New Jersey Department of Environmental Protection, pursuant to Bid No. 25-05, for a term to expire upon completion of the project in accordance with N.J.S.A. 40A:11-15(9). This project will be funded by a New Jersey Infrastructure Bank loan.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, that a contract is hereby awarded to CDM Smith in the amount of \$168,800.00, paid at rates ranging from \$315.00 per hour for Senior Technical Advisor to \$125.00 per hour for Field Technician, for Design Support Services of Pressure Mitigation Project, for a term to expire at the completion of the project; subject to the following:

1. The award of this contract is subject to finalization of the contract terms to be drafted and approved by Corporation Counsel.
2. Any contract amendments which may become necessary shall be subject to the City's ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council.
3. CDM Smith may be paid upon passage and certification of the herein resolution, and for a period of ninety (90) days thereafter, before the final execution of a contractual agreement. Said payments shall be in accordance with this resolution and CDM Smith's Proposal, as is fully delineated herein. If a finalized contract is not entered within ninety (90) days following the date of the herein resolution, all work and payments will be put on hold until the contract is finalized. CDM Smith shall be entitled to payment upon submission of an appropriate invoice for all work authorized and performed during the ninety (90) day period but not for any work performed thereafter until and unless the contract is finalized and fully executed by both parties; and,
4. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
5. The City is in receipt of the Stockholder Disclosure form, Contribution Disclosure form, Certificate of Employee Information Report, Business Registration Certificate, and Certificate of Insurance.
6. The Mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

CDM Smith
110 Fieldcrest Avenue, #8
6th Floor
Edison, NJ 08837

RESULT:	Adopted [Unanimous]
SPONSOR:	Tiffanie Fisher
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-557

RESOLUTION AWARDING A PROFESSIONAL SERVICES CONTRACT IN THE AMOUNT NOT TO EXCEED \$294,651.50 TO VEOLIA WATER CONTRACT OPERATIONS USA, INC. FOR CONSTRUCTION ADMINISTRATION AND INSPECTION SERVICES OF PRESSURE MITIGATION PROJECT FUNDED BY THE WATER UTILITY (B-719) (**COUNCIL MEMBER FISHER**)

1. **WHEREAS**, the City of Hoboken requires the services of a qualified professional to provide construction engineering services including construction administration, inspection, and observation, relative to the Pressure Mitigation Project in Hoboken; and,

2. **WHEREAS**, pursuant to the Amended and Restated Operation, Maintenance, and Management Agreement dated June 26, 2019 but effective as of July 1, 2019 between the City of Hoboken, in the County of Hudson, New Jersey (the “City”) and Suez Water New Jersey Inc. (“SWNJ”) and Suez Water Environmental Services, Inc. (“SWES”) (SWES together with SWNJ, the “Contract Partner”), the City agrees to pay the Contract Partner a Capital Improvements Fee for services described in Section 4 of the Best Management Practices as described in the attached Scope of Services; and,

3. **WHEREAS**, the Capital Improvements Fee means 11% of the applicable Total Capital Improvements costs for projects greater than \$1,000,000; and,

4. **WHEREAS**, the Total Capital Improvements Costs means the total costs to implement a Capital Improvement to be paid to the applicable contractor or subcontractor by the City; and,

5. **WHEREAS**, the 11% Capital Improvements Fee includes qualified professional construction engineering services including, but not limited to, construction administration, inspection, and observation; and,

6. **WHEREAS**, the City of Hoboken invited bidders for the Pressure Mitigation Project which represents the Total Capital Improvement Costs by way of Bid No.: 25-05, and received responses on May 29, 2025; and,

7. **WHEREAS**, the lowest responsive and responsible bidder for the construction of the Pressure Mitigation Project is J. Fletcher Creamer & Son, Inc. in the amount of \$2,678,650.00; and,

8. **WHEREAS**, the 11% Capital Improvements Fee of \$2,678,650.00 “Total Capital Improvement Costs” is \$294,651.50; and,

9. **WHEREAS**, the Office of the City Engineer therefore recommends awarding a contract in the amount of \$294,651.50 to Veolia Water Contract Operations USA, Inc., subject to approval of the New Jersey Department of Environmental Protection, pursuant to Bid No. 25-05, for a term to expire upon completion of the project in accordance with N.J.S.A. 40A:11-15(9). This project will be funded by a New Jersey Infrastructure Bank loan.

NOW, THEREFORE, BE IT RESOLVED, that the City Council of the City of Hoboken authorizes the Mayor to enter into a contract with Veolia Water Contract Operations USA, Inc., as described herein, to provide construction administration, observation, and inspection services in the amount of \$294,651.50; and,

BE IT FURTHER RESOLVED, that no minimum payment is implied or guaranteed and the City reserves the right to cancel this Agreement at any time and Veolia Water Contract Operations USA, Inc. shall only be paid for the work completed or on a pro-rated amount if payment arrangements are based upon a fixed retainer; and,

BE IT FURTHER RESOLVED, by the City Council of the City of Hoboken, that a contract is awarded to Veolia Water Contract Operations USA, Inc. in the amount of \$294,651.50 for a term to expire upon completion of the project; subject to the following:

1. The award of this contract is subject to finalization of the contract terms to be drafted and approved by Corporation Counsel.

2. Any contract amendments which may become necessary shall be subject to the City's ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council.
3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
4. The City is in receipt of the Stockholder Disclosure form, Contribution Disclosure form, Certificate of Employee Information Report, Business Registration Certificate, and Certificate of Insurance.
5. Veolia Water Contract Operations USA, Inc. may be paid upon passage and certification of the herein resolution, and for a period of ninety (90) days thereafter, before the final execution of a contractual agreement. Said payments shall be in accordance with this resolution and the Veolia Water Contract Operations USA, Inc. proposal, as is fully delineated herein. If a finalized contract is not entered within ninety (90) days following the date of the herein resolution, all work and payments will be put on hold until the contract is finalized. The vendor shall be entitled to payment upon submission of an appropriate invoice for all work authorized and performed during the ninety (90) day period but not for any work performed thereafter until and unless the contract is finalized and fully executed by both parties.
6. The Mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

Veolia Water Contract Operations USA, Inc.

461 From Road, Suite 400

Paramus, New Jersey 07652

RESULT:	Adopted [Unanimous]
SPONSOR:	Tiffanie Fisher
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-558

RESOLUTION AWARDING A CONTRACT TO J. FLETCHER CREAMER AND SON, INC. IN THE AMOUNT OF \$2,678,650.00 FOR CONSTRUCTION SERVICES OF THE PRESSURE MITIGATION PROJECT FUNDED BY THE HOBOKEN WATER UTILITY (B-719) (COUNCIL MEMBER FISHER)

1. **WHEREAS**, the City requires a qualified contractor to construct the Hoboken Pressure Mitigation Interconnection project including the installation of pressure control valves at the

existing Jersey City at Newark and Harrison Streets and a new interconnection with Jersey City on Henderson Street; and,

2. **WHEREAS**, the City invited bidders for said services by way of Bid No 25-05, and received the following responses on May 29, 2025:

<u>Bidder</u>	<u>Total Bid Price</u>
J. Fletcher Creamer & Son, Inc.	\$2,678,650.00
Spiniello Companies	\$3,339,106.50
Underground Utilities Corp.	\$3,893,988.00
Montana Construction	\$4,230,321.00

3. **WHEREAS**, CDM Smith reviewed and tabulated the bids including bidder qualifications and provided the attached recommendation for award of the project to J. Fletcher Creamer & Son, Inc. in the amount of \$2,678,650.00; and,

4. **WHEREAS**, the Office of the City Engineer and Water Utility recommends awarding a contract to J. Fletcher Creamer & Son, Inc., the lowest responsive and responsible bidder, for construction of the Hoboken Pressure Mitigation Interconnection project in the amount of \$2,678,650.00, subject to approval of the New Jersey Department of Environmental Protection, pursuant to Bid No. 25-05, for a term to expire upon completion of the project in accordance with N.J.S.A. 40A:11-15(9). This project will be funded by a New Jersey Infrastructure Bank loan.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, that a contract is awarded to J. Fletcher Creamer & Son, Inc. in the amount of \$2,678,650.00 for a term to expire upon completion of the project; subject to the following:

1. The award of this contract is subject to finalization of the contract terms to be drafted and approved by Corporation Counsel.
2. Any contract amendments which may become necessary shall be subject to the City's ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council.

3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
4. The City is in receipt of the Stockholder Disclosure form, Contribution Disclosure form, Certificate of Employee Information Report, Business Registration Certificate, and Certificate of Insurance.
5. The Mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

J. Fletcher Creamer & Son, Inc.
101 East Broadway
Hackensack, NJ 07601

RESULT:	Adopted [Unanimous]
SPONSOR:	Tiffanie Fisher
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-559

RESOLUTION AWARDING A CONTRACT TO JOHNSON COMMUNICATIONS LLC FOR UPGRADES TO THE VIDEO SURVEILLANCE SYSTEM AT HOBOKEN POLICE HEADQUARTERS IN THE AMOUNT OF \$16,238.19 FUNDED BY Z-523 (COUNCIL MEMBER FISHER)

1. **WHEREAS**, the City requires upgrades to its surveillance system, including license enhancements, system integration, KVM switch replacement, and installation of upgraded and additional security cameras at the Hoboken Police Department Headquarters located at 106 Hudson Street, Hoboken, New Jersey; and,
2. **WHEREAS**, N.J.S.A. 40A:11-10 and N.J.S.A. 40A:11-12 permit municipalities to award public contracts without public bidding when the vendor is an approved state contractor or part of an approved national cooperative; and,
3. **WHEREAS**, Johnson Communications, d/b/a JCTolutions, has been approved for the Union County Cooperative contract #UCCP 8-2022, which cooperative the City is a part of; and,
4. **WHEREAS**, Johnson Communications provided the attached proposal for the above-

referenced for video surveillance upgrades; and,

5. **WHEREAS**, the Administration recommends awarding a contract to Johnson Communications in accordance with the Union County Cooperative contract #UCCP 8-2022 in the not to exceed amount of \$16,238.19, for a term to expire in one (1) year.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, that a contract is hereby awarded to Johnson Communications in the amount of \$16,238.19, for a term to expire in one (1) year; subject to the following:

1. The above recitals are incorporated herein as though fully set forth at length.
2. The terms and conditions of the Union County Cooperative contract #UCCP 8-2022 shall govern the agreement between the City and Johnson Communications.
3. Any requests for an increase in the not to exceed amount is in the City's sole discretion, and is subject to the City's ability to appropriate sufficient funds. The City shall not be held liable for costs incurred above the not to exceed amount, except as provided herein.
4. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
5. The Mayor, or his designee, is hereby authorized to execute an agreement, voucher, and/or purchase order for the abovementioned goods and/or services with:

Johnson Communications
36 Commerce Street
Springfield, NJ 07081

RESULT:	Adopted [Unanimous]
SPONSOR:	Tiffanie Fisher
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

Community Development

25-560

RESOLUTION RELEASING A PERFORMANCE BOND IN THE TOTAL AMOUNT OF \$54,915.90 RELATED TO A CONSTRUCTION PROJECT AT 235-237 WASHINGTON STREET, HOZ-20-8, BLOCK 213, LOTS 15.01 AND 16.01 (**COUNCIL MEMBER RAMOS**)

WHEREAS, a performance bond was posted by 235-237 Washington Street, LLC for a construction project located at Block 213, Lots 15.01 and 16.01 on the tax map of the City of Hoboken, being commonly known as 235-237 Washington Street, Hoboken, New Jersey, in the total amount of \$54,915.90; and,

WHEREAS, Boswell Engineering performed a bond release inspection and issued the attached memorandum and has recommended that the performance bond be released subject to the condition that 235-237 Washington Street, LLC post a maintenance bond in the amount of \$8,237.39; and,

WHEREAS, the City recommends releasing the performance bond in the amount of \$54,915.90 on the condition that 235-237 Washington Street, LLC post a maintenance bond in the amount of \$8,237.39.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken that the performance bond posted by 235-237 Washington Street, LLC for the construction project at 235-237 Washington Street, Hoboken, New Jersey in the amount of \$54,915.90 shall be released upon receipt of a maintenance bond in the amount of \$8,237.39; and,

BE IT FURTHER RESOLVED, that the Mayor is hereby authorized to direct release of said bond, and the City's Administration and Corporation Counsel are directed to take any and all action necessary to effectuate the intent and purpose of this Resolution; and,

BE IT FURTHER RESOLVED, that certified copies of this Resolution shall be forwarded to all parties in the administration of this action.

RESULT:	Adopted [Unanimous]
SPONSOR:	Ruben Ramos
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-561

RESOLUTION RELEASING A PERFORMANCE BOND IN THE TOTAL AMOUNT OF \$32,616.00 RELATED TO A CONSTRUCTION PROJECT AT 706-714 MADISON STREET, HOP-22-11, BLOCK 82, LOT 27,28,29,30,31 (**COUNCIL MEMBER RUSSO**)

WHEREAS, a performance bond was posted by 706-714 Madison Street, LLC, for a construction project located at Block 82, Lots 27-31 on the tax map of the City of Hoboken, being commonly known as 706-714 Madison Street, Hoboken, New Jersey, in the total amount of \$32,616.00; and,

WHEREAS, Boswell Engineering performed a bond release inspection and issued the attached memorandum and has recommended that the performance bond be released subject to the condition that 706-714 Madison Street, LLC, post a maintenance bond in the amount of \$4,077.00; and,

WHEREAS, the City recommends releasing the performance bond in the amount of \$32,616.00 on the condition that 706-714 Madison Street, LLC, post a maintenance bond in the amount of \$4,077.00.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken that the performance bond posted by 706-714 Madison Street, LLC, for the construction project at 706-714 Madison Street, Hoboken, New Jersey in the amount of \$32,616.00 shall be released upon receipt of a maintenance bond in the amount of \$4,077.00; and,

BE IT FURTHER RESOLVED, that the Mayor is hereby authorized to direct release of said bond, and the City's Administration and Corporation Counsel are directed to take any and all action necessary to effectuate the intent and purpose of this Resolution; and,

BE IT FURTHER RESOLVED, that certified copies of this Resolution shall be forwarded to all parties in the administration of this action.

RESULT:	Adopted [Unanimous]
SPONSOR:	Michael Russo
SECOND:	Ruben Ramos
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-562

RESOLUTION RELEASING A PERFORMANCE BOND IN THE TOTAL AMOUNT OF \$23,678.40 RELATED TO A CONSTRUCTION PROJECT AT 906 PARK AVE, HOP-22-20, BLOCK 171, LOT 34 (**COUNCIL MEMBER RUSSO**)

WHEREAS, a performance bond was posted by JMP Development LLC, for a construction

project located at Block 171, Lot 34 on the tax map of the City of Hoboken, being commonly known as 906 Park Avenue, Hoboken, New Jersey, in the total amount of \$23,678.40; and,

WHEREAS, Boswell Engineering performed a bond release inspection and issued the attached memorandum and has recommended that the performance bond be released subject to the condition that JMP Development LLC, post a maintenance bond in the amount of \$2,959.80; and,

WHEREAS, the City recommends releasing the performance bond in the amount of \$23,678.40 on the condition that JMP Development LLC, post a maintenance bond in the amount of \$2,959.80.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken that the performance bond posted by JMP Development LLC, for the construction project at 906 Park Avenue, Hoboken, New Jersey in the amount of \$23,678.40 shall be released upon receipt of a maintenance bond in the amount of \$2,959.80; and,

BE IT FURTHER RESOLVED, that the Mayor is hereby authorized to direct release of said bond, and the City’s Administration and Corporation Counsel are directed to take any and all action necessary to effectuate the intent and purpose of this Resolution; and,

BE IT FURTHER RESOLVED, that certified copies of this Resolution shall be forwarded to all parties in the administration of this action.

RESULT:	Adopted [Unanimous]
SPONSOR:	Michael Russo
SECOND:	Ruben Ramos
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-563

RESOLUTION ADOPTING THE 2025-2029 FIVE YEAR CONSOLIDATED PLAN AND 2025 ANNUAL ACTION PLAN FOR LOCAL IMPLEMENTATION OF THE U.S. DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT (HUD) CONSOLIDATED PLAN PROCESS FOR THE COMMUNITY DEVELOPMENT BLOCK GRANT (CDBG) PROGRAM (**COUNCIL MEMBER RAMOS**)

1. **WHEREAS**, the City of Hoboken currently operates as an Entitlement Grantee through the US Department of Housing and Urban Development’s (HUD) Community Development Block Grant (CDBG) program; and,

2. **WHEREAS**, Entitlement Grantees are required to adopt a 5-Year Consolidated Plan which coordinates all elements of community development including housing, public facility development and public services into a single plan and an Annual Action Plan which serves as the annual application for CDBG Entitlement funds; and,
3. **WHEREAS**, the City has been notified by HUD that it will receive \$1,053,789 for the Program Year 2025 allotment; and,
4. **WHEREAS**, the City has prepared its Consolidated Plan for Program Years 2025 through 2029, which sets forth the City's plan to pursue the overall goals of the community development and planning programs of HUD; and,
5. **WHEREAS**, the City has prepared an Annual Action Plan for Program Year 2025 which provides a concise summary of the actions, activities, and the specific federal and non-federal resources that will be used to address the priority needs and specific goals identified by the Consolidated Plan; and,
6. **WHEREAS**, the City's Department of Community Development will be submitting the 5-Year Consolidated Plan and the Annual Action Plan to HUD for review and approval on or around July 14, 2025.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken as follows:

1. The 5-Year Consolidated Plan and the Annual Action Plan for the 2025 Program Year, attached as "Exhibit A" is adopted for the City of Hoboken as an Entitlement Grantee for the CDBG Program; and,
2. The Mayor is hereby authorized and directed to sign the Application for Federal Assistance and submit the 5-Year Consolidated Plan and the Annual Action Plan to the HUD for the CDBG entitlement grant; and,

3. The Mayor is hereby authorized and directed to sign the grant agreement with HUD and all related Subrecipient and other agreements necessary to further the objectives of the Annual Action Plan; and,
4. City of Hoboken Department of Community Development staff are hereby authorized to take all administrative actions to submit the Annual Action Plan for the 2025 Program Year to HUD for CDBG Entitlement Grantee funding approval.

BE IT FURTHER RESOLVED, that this resolution shall take effect immediately.

RESULT:	Adopted [Unanimous]
SPONSOR:	Ruben Ramos
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-564

RESOLUTION AWARDING A NON-FAIR AND OPEN CONTRACT TO TOPOLOGY, NJ LLC FOR GENERAL PLANNING SERVICES IN THE AMOUNT OF \$10,000 (COUNCILMAN COHEN)

1. **WHEREAS**, service to the City as a Planner is a professional service as defined in N.J.S.A. 40A:11-5(1)(a)(i) et seq; and,
2. **WHEREAS**, Topology, NJ LLC has intricate knowledge of the Local Redevelopment and Housing Law and Municipal Land Use Law; and,
3. **WHEREAS**, pursuant to the attached proposal, Topology, NJ LLC has offered to provide the aforementioned services for the amount of \$10,000.00, in accordance with the rate schedule included therein; and,
4. **WHEREAS**, the Administration therefore recommends awarding a professional service contract to Topology, NJ LLC to provide general planning support on an on-call basis; and,
5. **WHEREAS**, the City of Hoboken has a need to enter into the contract with Topology NJ, LLC as a non-fair and open contract pursuant to the provisions of N.J.S.A. 19:44A-20.5; and,

6. **WHEREAS**, the anticipated term of this contract is one (1) year; and,
7. **WHEREAS**, Topology, NJ LLC has completed and submitted a Business Entity Disclosure Certification which certifies that Topology, NJ LLC has not made any reportable contributions to a political or candidate committee in the City of Hoboken in the previous one year, and that the contract will prohibit Topology, NJ LLC from making any reportable contributions through the term of the contract; and,
8. **WHEREAS**, the Administration recommends awarding a professional service contract to Topology, NJ LLC in the amount of \$10,000.00, in accordance with the rates set forth in the attached proposal, for a term of July 9, 2025, through July 9, 2026.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken that a contract is hereby awarded to Topology, NJ LLC in the amount of \$10,000.00 to provide general planning support on an on-call basis for a term starting July 9, 2025, through July 9, 2026; and,

BE IT FURTHER RESOLVED, that the business disclosure entity certification and the determination of value be placed on file with this resolution; and,

BE IT FURTHER RESOLVED, that no minimum payment is implied or guaranteed, and the City reserves the right to cancel this Agreement at any time and Topology, NJ LLC shall only be paid for the work completed or on a pro-rated amount if payment arrangements are based upon a fixed retainer; and,

BE IT FURTHER RESOLVED, that this resolution shall take effect immediately, subject to the following conditions:

1. The award of this contract is subject to finalization of the contract terms to be drafted and approved by Corporation Counsel.
2. Any contract amendments which may become necessary shall be subject to the City's ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council.
3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all necessary actions to complete and realize the intent and purpose of this resolution.

4. The Mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

Topology, NJ LLC
60 Union Street
#1N
Newark, New Jersey 07105

RESULT:	Adopted [Unanimous]
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-565

RESOLUTION AMENDING THE PROFESSIONAL SERVICES CONTRACT WITH ANTONELLI KANTOR RIVERA FOR RENT LEVELING BOARD ATTORNEY IN THE INCREASED AMOUNT OF \$25,000 FOR A NEW TOTAL CONTRACT AMOUNT OF \$50,000 (**COUNCILMAN COHEN**)

1. **WHEREAS**, pursuant to City Council Resolution 25-262 dated March 19, 2025, the City Council previously awarded a contract to Antonelli Kantor Rivera (“Antonelli”) to serve as special counsel to the Rent Leveling and Stabilization Board in amount of \$25,000.00; and,
2. **WHEREAS**, an amendment to the contract in the increased amount of \$25,000.00 is necessary to address fees related to both ongoing litigation and routine Board functions within the Calendar Year 2025; and,
3. **WHEREAS**, the Administration recommends amending the contract with Antonelli for legal services to the Rent Leveling and Stabilization Board in the increased amount of \$25,000.00, for a new total contract amount of \$50,000.00.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken that the Calendar Year 2025 contract with Antonelli for Rent Leveling and Stabilization Board attorney is hereby increased in the amount of \$25,000.00, for a new total contract amount of \$50,000.00; subject to the following:

1. The award of this contract is subject to finalization of the contract terms.
2. Any contract amendments or change orders which may become necessary shall be subject to the City's ability to appropriate sufficient funds, which such appropriation shall be at the sole discretion of the City Council.
3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
4. The Mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

Antonelli Kantor Rivera PC
354 Eisenhower Parkway, Suite 1000
Livingston, NJ 07039

RESULT:	Adopted [Unanimous]
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-566

RESOLUTION AWARDING A PROFESSIONAL SERVICES CONTRACT TO OTTEAU GROUP, INC. IN THE AMOUNT OF \$7,500 TO PREPARE AN APPRAISAL FOR THE PROPERTY LOCATED AT 1301 WASHINGTON STREET (BLOCK 245, LOT 1, QUALIFIER C0001) (**COUNCILMAN COHEN**)

1. **WHEREAS**, appraisal services are considered a professional service pursuant to N.J.S.A. 40A:11-5(1)(a)(i) et seq.; and,
2. **WHEREAS**, the City of Hoboken has a need to appraise the property located at 1301 Washington Street (Block 245, Lot 1, Qualifier C0001), to determine the fair market value of the property; and,
3. **WHEREAS**, Otteau Group, Inc. was prequalified at the February 19, 2025 City Council meeting by Resolution 25-200 to provide real estate appraisals services; and,

4. **WHEREAS**, pursuant to the attached proposal, Otteau Group, Inc. can provide the aforementioned services to the City for the total amount of \$7,500.00, for a term to expire July 9, 2026; and,
5. **WHEREAS**, as part of a shared commitment to collaboration between the City and the Hoboken Community Center (“HCC”), which operates a food pantry and single room occupancy facility for homeless men at 1301 Washington Street, HCC will reimburse the City for 50% of the costs of the aforementioned services within 60 days of receipt of the final report; and,
6. **WHEREAS**, the Administration recommends awarding a contract to Otteau Group, Inc. to prepare an appraisal report for 1301 Washington Street (Block 245, Lot 1, Qualifier C0001), which will estimate the subject property’s fee simple market value, in an amount not to exceed \$7,500.00, with a term to expire no later than July 9, 2026.

NOW, THEREFORE, BE IT RESOLVED, that a contract is hereby awarded to Otteau Group, Inc. to prepare an appraisal report for 1301 Washington Street (Block 245, Lot 1, Qualifier C0001), which will estimate the subject property’s fee simple market value, in an amount not to exceed \$7,500.00, for a term to expire no later than July 9, 2026; and;

BE IT FURTHER RESOLVED, that no minimum payment is implied or guaranteed, and the City reserves the right to cancel this Agreement at any time Otteau Group, Inc. shall only be paid for the work completed or on a pro-rated amount if payment arrangements are based upon a fixed retainer; and:

1. The award of this contract is subject to finalization of the contract terms to be drafted and approved by Corporation Counsel.
2. Any contract amendments which may become necessary shall be subject to the City’s ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council.
3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.

4. The Mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

Otteau Group, Inc.
Administrative Office
100 Matawan Road, Suite 320
Matawan, NJ 07747

RESULT:	Adopted [Unanimous]
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-567

RESOLUTION AUTHORIZING THE EXECUTION OF A TEMPORARY ACCESS AND CONSTRUCTION AGREEMENT BY AND BETWEEN THE CITY OF HOBOKEN AND OBSERVER HIGHWAY URBAN RENEWAL, LLC, AN AFFILIATE OF LCOR HOBOKEN RAIL STATION DEVELOPMENT LLC, THE DESIGNATED REDEVELOPER OF THE REDEVELOPMENT PROJECT KNOWN AS “HOBOKEN CONNECT”, FOR THE CONSTRUCTION AND IMPLEMENTATION OF THE HUDSON PLACE IMPROVEMENTS (**COUNCIL MEMBER RAMOS**)

WHEREAS, by Resolution of the City Council of the City of Hoboken adopted on July 6, 2022, the City entered into that certain Redevelopment Agreement with LCOR Hoboken Rail Station Development LLC (“LCOR”), an Affiliate of Observer Highway Urban Renewal, LLC (“Observer URE”), dated as of October 17, 2022, as amended on August 26, 2024 and October 15, 2024 (the “Redevelopment Agreement”); and

WHEREAS, the Redevelopment Agreement was partially assigned to the Observer URE by a certain “Partial Assignment and Assumption of Redevelopment Agreement (Residential Building Site - Site 2)” between LCOR, as Assignor, and Observer URE, as Assignee, date December 9, 2024 (the “Assignment”); and

WHEREAS, pursuant to, *inter alia*, the Assignment, Observer URE is the Redeveloper of that certain real property in the City of Hoboken, County of Hudson, State of New Jersey, known and designated as Block 139, Lot 1.02 and Block 229, Lots 1 and 2, on the Tax Maps of the City of Hoboken (the “Property”); and

WHEREAS, LCOR, in accordance with Section 3.1.7 of the Redevelopment Agreement, participated in the process for the design of portions of Hudson Place, real property within the Right-of-Way owned by and under the jurisdiction of the City, which includes the redesign of Hudson Place between River Street and Warrington Plaza, as a “woonerf-type” street improvement as depicted on those certain engineered plans, which were prepared by Redeveloper and reviewed and approved by the City Engineer on or about April 28, 2025 (“Hudson Place Improvements”); and

WHEREAS, the Redeveloper now requires the necessary access to certain City Rights-of-Way to construct the Hudson Place Improvements; and

WHEREAS, as contemplated and required in Section 3.1.9(f) of the Redevelopment Agreement, Observer URE requested, and the City desires to grant to Observer URE, temporary access and construction rights to undertake the construction of the Hudson Place Improvements, pursuant to the terms and conditions set forth in the form of Access Agreement attached hereto as Attachment A.

NOW, THEREFORE, it is hereby resolved by the City Council of the City of Hoboken as follows:

1. The Mayor of the City of Hoboken is hereby authorized to execute the Temporary Access and Construction Agreement by and between the City of Hoboken and Observer Highway Urban Renewal, LLC in substantially the form attached hereto as Attachment A.

2. Staff and consultants to the City are hereby authorized and directed to take all other administrative actions as are necessary and appropriate to accomplish the goals and intent of this Resolution.

3. This Resolution shall be effective immediately, subject to the payment of any sums which may be due and owing to the City of Hoboken by Observer URE pursuant to the Redevelopment Agreement.

RESULT:	Adopted [Unanimous]
SPONSOR:	Ruben Ramos
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-568

RESOLUTION OF THE CITY OF HOBOKEN DESIGNATING THE PROPERTIES IDENTIFIED ON THE CITY’S TAX RECORDS AS BLOCK 32, LOT 19 (122 CLINTON STREET), BLOCK 52, LOT 18.01 (328 CLINTON STREET), BLOCK 53, LOT 1 (300 WILLOW), AND BLOCK 166, LOT 4 (307 WILLOW) AS A NON-CONDEMNATION AREA IN NEED OF REDEVELOPMENT PURSUANT TO THE LOCAL REDEVELOPMENT AND HOUSING LAW, N.J.S.A. 40A:12A-1 ET SEQ. (**COUNCIL MEMBER RUSSO, COUNCIL MEMBER RAMOS, COUNCIL MEMBER JABBOUR**)

1. **WHEREAS**, the Local Redevelopment and Housing Law, N.J.S.A. 40A:12A-1, et seq., as amended and supplemented (the "**Redevelopment Law**"), provides a process for municipalities to participate in the redevelopment and improvement of areas in need of redevelopment or as areas in need of rehabilitation; and,
2. **WHEREAS**, pursuant to N.J.S.A. 40A:12A-6(a), in order to determine whether certain parcels of land constitute areas in need of redevelopment under the Redevelopment Law, the City Council (the "**Council**") of the City of Hoboken (the "**City**") must authorize the Hoboken Planning Board (the "**Planning Board**") to conduct a preliminary investigation of the area and make recommendations to the Council; and,
3. **WHEREAS**, pursuant to Resolution 25-385, adopted May 7, 2025, the City authorized and directed the Planning Board to conduct an investigation of the properties located on Block 32, Lot 19 (122 Clinton Street), Block 52, Lot 18.01 (328 Clinton Street), Block 53,

Lot 1 (300 Willow), and Block 166, Lot 4 (307 Willow) (the “**Study Area**”) to determine whether all or a portion of the Study Area meets the criteria set forth in the Redevelopment Law, specifically N.J.S.A. 40A:12A-5, and whether the Study Area should be designated as an area in need of redevelopment; and,

4. **WHEREAS**, pursuant to Resolution 25-386, adopted May 7, 2025, the City authorized Topology, LLC (the “**Planning Consultant**”) to prepare a preliminary investigation of the Study Area as part of the process of assessing whether the Study Area should be designated as a non-condemnation area in need of redevelopment; and,
5. **WHEREAS**, the Planning Board received a report setting forth the basis for the investigation prepared by the Planning Consultant, entitled, “Preliminary Investigation Report Non-Condensation Area in Need of Redevelopment” dated June 13, 2025, concerning the designation of the Study Area as a non-condemnation area in need of redevelopment (the “**Report**”); and,
6. **WHEREAS**, the Redevelopment Law requires the Planning Board to conduct a public hearing prior to a determination whether the Study Area should be designated as a non-condemnation area in need of redevelopment, at which hearing the Planning Board shall hear all persons who are interested in or would be affected by a determination that the Study Area is an area in need of redevelopment; and,
7. **WHEREAS**, on July 7, 2025, the Planning Board reviewed the Report, heard testimony from representatives of the Planning Consultant, conducted a public hearing during which members of the general public were given an opportunity to present their own evidence and/or to cross-examine the Planning Consultant, and to address questions to the Planning Board and its representatives concerning the potential designation of the Study Area as a non-condemnation area in need of redevelopment; and,
8. **WHEREAS**, after the conclusion of the public hearing described above, the Planning Board voted to adopt and accept the recommendation set forth in the Report with regard to three of the four Study Area parcels that were evaluated by the Planning Consultant in the Report. The three parcels recommended by the Planning Board to be included as a non-condemnation redevelopment area are Block 52, Lot 18.01 (328 Clinton Street), Block 53, Lot 1 (300 Willow), and Block 166, Lot 4 (307 Willow), and the one parcel not recommended to be included is Block 32, Lot 19 (122 Clinton Street); and,

9. **WHEREAS**, the Council agrees with the conclusion of the Planning Board that three of the four parcels in the Study Area satisfy the criterion for redevelopment area designation set forth in the Redevelopment Law but does not accept the recommendation that the fourth parcel, Block 32, Lot 19 (122 Clinton Street), be excluded from the redevelopment area designation and finds that the entire Study Area, including Block 32, Lot 19 (122 Clinton Street), shall be designated as a redevelopment area and that such conclusion is supported by substantial evidence; and
10. **WHEREAS**, The Council found that the common ownership of three of hospital-owned properties allowed greater flexibility with the overall redevelopment of the hospital, therefore the common ownership interest of those lots supports the inclusion of Block 32, Lot 19 in the redevelopment area designation; and
11. **WHEREAS**, the Council, as the designated Hoboken redevelopment entity, now desires to designate the Study Area as a non-condemnation area in need of redevelopment pursuant to N.J.S.A. 40A:12A-6, with such designation authorizing the City and the Council to use all those powers provided by the Redevelopment Law for use in a redevelopment area, other than the power of eminent domain.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Hoboken as follows:

Section 1. The aforementioned recitals are incorporated herein as though fully set forth at length.

Section 2. The recommendations and conclusions of the Planning Board are hereby accepted by the Council except with regard to the Planning board's recommendation that the parcel at Block 32, Lot 19 be excluded, which recommendation the Council rejects for reasons stated above.

Section 3. Based upon the Report's findings, the Study Area is hereby designated as a "Non-Condensation Redevelopment Area" as referenced in the Redevelopment Law. The designation of the Study Area as a "Non-Condensation Redevelopment Area" shall authorize the City and the Council, as the designated redevelopment entity, to exercise all powers under the Redevelopment Law except the power of eminent domain.

Section 4. In accordance with the Redevelopment Law, the Council hereby directs the City Clerk to transmit a certified copy of this resolution forthwith to the Commissioner of the Department of Community Affairs and to all record owners and person(s) who filed a written objection with respect to

the herein designation.

Section 5. If any part of this resolution shall be deemed invalid, such parts shall be severed and the invalidity thereby shall not affect the remaining parts of this resolution.

Section 6. A copy of this resolution shall be available for public inspection at the offices of the City Clerk.

Section 7. This resolution shall take effect immediately.

RESULT:	Adopted [Unanimous]
SPONSOR:	Michael Russo
SECOND:	Ruben Ramos
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

~~RESOLUTION OF THE CITY OF HOBOKEN AUTHORIZING THE EXECUTION
OF AN INTERIM COST AND CONDITIONAL DESIGNATION AGREEMENT
WITH SKYLIGHT RESIDENTIAL GROUP ACQUISITIONS, LLC, INCLUDING
PROVISION FOR AN ESCROW DEPOSIT TO DEFRAY THE CITY'S COSTS
INCURRED IN THE NEGOTIATION OF A REDEVELOPMENT AGREEMENT~~

Corporation Counsel

25-569

RESOLUTION QUALIFYING SPECIAL COUNSEL FOR FEDERAL SANCTUARY CITY
LITIGATION (**COUNCILMAN COHEN**)

1. **WHEREAS**, the City of Hoboken is a defendant in *United States v. City of Newark* et al. (Docket No. 2:25-cv-05081) regarding sanctuary city policies; and,
2. **WHEREAS**, the City of Hoboken requires specialized legal representation in the above-captioned federal litigation; and,

3. **WHEREAS**, service as special counsel constitutes a professional service under N.J.S.A. 40A:11-1 et seq.; and,
4. **WHEREAS**, the City issued RFP #25-03 soliciting qualifications from firms for special counsel services related to this federal litigation; and,
5. **WHEREAS**, the following firms submitted proposals in response to RFP #25-03:
 - a. Scarinci Hollenbeck, LLC
 - b. Milbank LLP
 - c. Florio Kenny Raval, LLP; and,
6. **WHEREAS**, the City has determined Milbank LLP is best qualified to provide effective, efficient, and cost-appropriate representation at a cost not to exceed \$25,000.00; and,
7. **WHEREAS**, the Administration recommends Milbank LLP to be qualified to provide legal services for the federal sanctuary city litigation.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Hoboken that Milbank LLP is hereby deemed qualified to serve as Special Counsel for the federal litigation regarding sanctuary city policies at a contract amount not to exceed \$25,000.00 for a term of one year from the date of award; and,

BE IT FURTHER RESOLVED that no contract shall be awarded unless approved by subsequent resolution of the Hoboken City Council.

RESULT:	Adopted [Unanimous]
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

Clerk

25-570

RESOLUTION TO ADOPT THE MINUTES OF THE MEETINGS OF THE CITY COUNCIL
DATED: REGULAR AND SPECIAL MEETING OF JUNE 16, 2025 (**COUNCIL MEMBER
JABBOUR**)

BE IT RESOLVED, that the attached Meeting Minutes for the City of Hoboken’s REGULAR AND SPECIAL MEETING OF JUNE 16, 2025 have been reviewed by the Governing Body, and are hereby approved by the Governing Body, and said Meeting Minutes shall now be made public, except to the extent said minutes include closed execution session discussions, which shall remain confidential until the need for confidentiality no longer exists, at which point the matters discussed therein will be made available to the public in accordance with applicable law.

RESULT:	Adopted [Unanimous]
SPONSOR:	Emily Jabbour
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

Finance

25-571

RESOLUTION AWARDING A PROFESSIONAL SERVICES CONTRACT TO ARH ASSOCIATES IN THE AMOUNT OF \$10,000.00 FOR 2025 TAX MAP MAINTENANCE (COUNCILMAN COHEN)

WHEREAS, the City requires a qualified vendor to perform maintenance on the City’s tax maps; and,

WHEREAS, pursuant to N.J.S.A. 40A:11-5 (“Exceptions”), “Any contract the amount of which exceeds the bid threshold, may be negotiated and awarded by the governing body without public advertising for bids and bidding therefor and shall be awarded by resolution of the governing body if...the subject matter thereof consists of: (d) the furnishing of a tax map or maps for the contracting unit; and,

WHEREAS, the Administration recommends awarding a contract to ARH Associates for Tax Map Maintenance in the amount of \$10,000, for a term to expire May 31, 2026.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, that a contract is hereby awarded to ARH Associates in the amount of \$10,000.00, for a term to expire May 31, 2026, and:

- 1. The award of this contract is subject to finalization of the contract terms to be drafted and approved by Corporation Counsel.

2. Any contract amendments which may become necessary shall be subject to the City's ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council.
3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
4. The Mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

ARH Associates
215 Bellevue Avenue
PO Box 579
Hammonton, NJ 08037

RESULT:	Adopted [Unanimous]
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-572

**GOVERNING BODY CERTIFICATION OF THE CALENDAR YEAR 2024 AUDIT
(COUNCILMAN COHEN)**

WHEREAS, N.J.S.A. 40A: 5-4 requires the governing body of every local unit to have made an annual audit of its books, accounts and financial transactions; and,

WHEREAS, the Annual Report of Audit for the calendar year 2024 has been filed by a Registered Municipal Accountant with the Hoboken City Clerk pursuant to N.J.S.A. 40A:5-6, and a copy has been received by each member of the governing body; and,

WHEREAS, N.J.S.A. 52:27BB-34 authorizes the Local Finance Board of the State of New Jersey to prescribe reports pertaining to the local fiscal affairs; and,

WHEREAS, the Local Finance Board has promulgated N.J.A.C. 5:30-6.5, a regulation requiring that the governing body of each municipality shall, by resolution, certify to the Local Finance Board of the State of New Jersey that all members of the governing body have reviewed, as a minimum, the sections of the annual audit entitled "Comments and Recommendations; and,

WHEREAS, the members of the governing body have personally reviewed, as a minimum, the Annual Report of Audit, and specifically the sections of the Annual Audit entitled “Comments and Recommendations, as evidenced by the group affidavit form of the governing body attached hereto; and,

WHEREAS, such resolution of certification shall be adopted by the Governing Body no later than forty-five days after the receipt of the annual audit, pursuant to N.J.A.C. 5:30-6.5; and,

WHEREAS, all members of the governing body have received and have familiarized themselves with, at least, the minimum requirements of the Local Finance Board of the State of New Jersey, as stated aforesaid and have subscribed to the affidavit, as provided by the Local Finance Board; and,

WHEREAS, failure to comply with the regulations of the Local Finance Board of the State of New Jersey may subject the members of the local governing body to the penalty provisions of N.J.S.A. 52:27BB-52, to wit:

N.J.S.A. 52:27BB-52: A local officer or member of a local governing body who, after a date fixed for compliance, fails or refuses to obey an order of the director (Director of Local Government Services), under the provisions of this Article, shall be guilty of a misdemeanor and, upon conviction, may be fined not more than one thousand dollars (\$1,000.00) or imprisoned for not more than one year, or both, in addition shall forfeit his office.

NOW, THEREFORE, BE IT RESOLVED, that the City Council of the City of Hoboken hereby states that it has complied with N.J.A.C. 5:30-6.5 and does hereby submit a certified copy of this resolution and the required affidavit to said Board to show evidence of said compliance.

**I HEREBY CERTIFY THAT THIS IS A TRUE COPY OF THE RESOLUTION
PASSED AT THE MEETING HELD ON July 9, 2025**

City Clerk

RESULT:	Adopted [Unanimous]
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

Parks, Recreation, and Public Works

25-573

RESOLUTION TO INCREASE CONTRACT TO MAGIC TOUCH CONSTRUCTION CO. IN THE AMOUNT OF \$21,509 FOR PLUMBING SERVICES AND RELATED PARTS IN ACCORDANCE WITH COOPERATIVE PURCHASING CONTRACT ESCNJ 24/25-16 (COUNCILMAN PRESINZANO)

1. **WHEREAS**, N.J.S.A. 40A:11-10 and N.J.S.A. 40A:11-12 permit municipalities to award public contracts without public bidding when the vendor is an approved state contractor or part of an approved national cooperative; and,
2. **WHEREAS**, Magic Touch Construction Company, Inc. (“Magic Touch”) has been approved for ESCNJ Cooperative Purchasing Contract ESCNJ 24/25-16, which is a cooperative the City is a part of; and,
3. **WHEREAS**, pursuant to Resolution 25-402 dated May 7, 2025, the City approved a contract with Magic Touch Construction Inc. for general plumbing services and related parts in the total amount of \$69,989.52; and,
4. **WHEREAS**, the City has encumbered a total of \$76,498.47 in general plumbing services and related parts to date, and an additional \$21,509 is anticipated to be expended over the next month for a new total contract amount of \$91,498.52 to be reflected under PO 25-00077.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, that the below-listed vendor is authorized to provide plumbing services and parts described in the ESCNJ contract, for a total not to exceed \$91,498.52 for a term to expire December 31, 2025; subject to the following:

1. The above recitals are incorporated herein as though fully set forth at length.

2. The contract entered into hereunder shall at all times be compliant with the terms and conditions of the underlying ESCNJ Cooperative Contract 24/25-16.
3. The agreement shall be subject to a standard non-appropriation clause in favor of the City of Hoboken.
4. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
5. The Mayor, or his designee, is hereby authorized to execute an agreement, voucher, and/or purchase order for the abovementioned goods and/or services with:

Magic Touch Construction Company, Inc.

59 West Street

Keyport, NJ 07735

RESULT:	Adopted [Unanimous]
SPONSOR:	Paul Presinzano
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-574

RESOLUTION TO AWARD CONTRACT TO GREEN VALLEY LANDSCAPING IN THE AMOUNT OF \$15,200 FOR RESILIENCITY PARK (COUNCILMAN PRESINZANO)

1. **WHEREAS**, the City requires additional landscape maintenance of the ResilienCity Park in addition to the specialized landscape contract previously issued; and,
2. **WHEREAS**, a contract was issued to Green Valley Landscape Desing & Maintenance LLC ("Green Valley") via Resolution 25-307 on April 2, 2025 in response to RFP 25-04 ;and,
3. **WHEREAS**, at the time of the submissions, the park was under a different landscape vendor and most of the vegetation was not present to be accounted in the RFP submission; and

4. **WHEREAS**, Green Valley has proposed a summer hand weeding specifically aimed to hand weed the bioswales and certain planting beds to get the area in good standing prior to their contract services starting; and,
5. **WHEREAS**, hand weeding invasive species of plants takes time and knowledge of plants that cannot be done by in-house City personnel; and,
6. **WHEREAS**, the City recommends awarding a contract in the not to exceed amount of \$15,200 to Green Valley for a term set to expire July 31, 2025.

NOW THEREFORE, BE IT RESOLVED, that a contract is hereby awarded to Green Valley for summer weeding services at the ResilienCity Park in the amount not to exceed \$15,200 for a term to expire July 31, 2025; and:

1. The award of this contract is subject to finalization of the contract terms.
2. Any change orders which shall become necessary shall be subject to the City's ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council.
3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
4. The mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

Green Valley Landscape Design & Maintenance LLC
PO BOX 125
Verona, NJ 07044

RESULT:	Adopted [Unanimous]
SPONSOR:	Joe Quintero
SECOND:	Ruben Ramos
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

Public Safety

**RESOLUTION APPROVING A SHARED SERVICE AGREEMENT BETWEEN THE CITY OF HOBOKEN AND JERSEY CITY FOR ANIMAL CONTROL SERVICES
(COUNCILMAN QUINTERO)**

1. **WHEREAS**, N.J.S.A. 40A:65-1 et seq. authorizes any local governmental unit to enter into a contract with any other governmental unit for the providing of any service that any party to such agreement is empowered to render within its own jurisdiction; and,
2. **WHEREAS**, the City of Hoboken and Jersey City wish to enter into an Agreement (attached hereto) wherein Jersey City will provide animal control and sheltering services to residents of Hoboken for the 2025 calendar year; and,
3. **WHEREAS**, it is the desire of the City Council of the City of Hoboken to authorize the execution of the attached Shared Service Agreement between Hoboken and Jersey City to provide animal control for the cost of \$103,200.00 annually; and,
4. **WHEREAS**, Enforcement of Animal Control Laws; ACOs will not be authorized to write summonses and complaints for offenses in the jurisdiction of the Municipality. ACC will cooperate with the Municipality's Health and Police Departments by providing information to support their enforcement actions. ACOs have statutory responsibilities to enforce N.J.S.A. 4:19-15.16 and N.J.S.A. 4:19-19, and will be authorized to write summonses and complaints for these offenses. Jersey City Animal Control will coordinate these cases with the Municipality, will manage the notices required from the ACO for potentially dangerous/vicious dogs, and will appear in court for testimony in these cases,
5. **WHEREAS**, Additional Services: should the Municipality take custody of animals pursuant to N.J.S.A. 4:19, or when ordered by the Health Officer for rabies confinement at the shelter -19 animal cruelty statutes, or potentially dangerous or vicious dog statutes, ACC will offer shelter without additional charge for up to thirty (30) days for the contract year for all such animals. After thirty (30) days of such service have been provided in the contract year, the Municipality will pay the rate of \$10 per day per dog for confinement until the dog is discharged. ACC will upon request of the Municipality, confine dogs seized by the Hoboken Police Department under state animal cruelty laws, N.J.S.A. 4:22-10 to 4:22-61 or N.J.S.A. 2C:33-31 and 32, at the rate of \$10 per day per dog, until the dog is discharged. ACC reserves the right to decline whether to admit or to discharge back to the

Municipality's custody animals deemed too dangerous to safely shelter or when, in the opinion of ACC, shelter would be inhumane for that animal.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, that the Mayor or his designee and the City Clerk be and are hereby authorized to execute the attached Shared Service Agreement between Hoboken and Jersey City, subject to finalization of the terms to be approved by the Law Department; and,

BE IT FURTHER RESOLVED, that the Mayor or his designee is hereby authorized to take any other actions necessary to complete and realize the intent and purpose of this resolution; and,

BE IT FURTHER RESOLVED, that this resolution shall take effect immediately upon passage.

RESULT:	Adopted [Unanimous]
SPONSOR:	Joe Quintero
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

Tax Collector

25-576

**RESOLUTION AUTHORIZING THE REFUND OF TAX OVERPAYMENTS
(COUNCILMAN COHEN)**

1. **WHEREAS**, an overpayment of taxes has been made for the following properties:

NAME	BL/LOT/UNIT	PROPERTY	QTR/YEAR	AMOUNT
TIMOTHY A BRENNAN 323 PRINCETON COURT SHREWSBURY, NJ 07702	95/6/C004E	915 MADISON ST	2/2025	\$2,263.13
WAI-HONG TUNG 904 LAUREN ALLEY KING OF PRUSSIA PA 19406	261.03/1/C0802	1125 MAXWELL LANE	2/2025	\$2,450.32

2. **WHEREAS**, Sharon Curran, Collector of Revenue for the City of Hoboken recommends that the following refunds be made in accordance with N.J.S.A. 54:4-69.

NOW, THEREFORE, BE IT RESOLVED, that a warrant be drawn on the City Treasury in the total amount of \$4,713.45, made payable to the following:

NAME	BL/LOT/UNIT	PROPERTY	QTR/YEAR	AMOUNT
TIMOTHY A BRENNAN 323 PRINCETON COURT SHREWSBURY, NJ 07702	95/6/C004E	915 MADISON ST	2/2025	\$2,263.13
WAI-HONG TUNG 904 LAUREN ALLEY KING OF PRUSSIA PA 19406	261.03/1/C0802	1125 MAXWELL LANE	2/2025	\$2,450.32

RESULT: Adopted [Unanimous] SPONSOR: Phil Cohen SECOND: Emily Jabbour AYES: Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle
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25-577

RESOLUTION AUTHORIZING A REFUND FROM A TAX APPEAL THAT WAS FILED IN THE STATE TAX COURT (**COUNCILMAN COHEN**)

1. **WHEREAS**, a tax appeal was filed in the State Tax Court for the following properties:

NAME	BL/LOT/UNIT	PROPERTY	YEAR	AMOUNT
JENNIFER R JACOBUS TRUSTEE FOR VAN LOON, YVETTEE LIVING TRSUT 201 LITTLETON ROAD, SUITE 100 MORRIS PLAINS, NJ 07950	261.01/1 C0437	1100 MAXWELL LANE	2024	\$4,721.71
WOLF VESPASIANO LLC ATTORNEY TRUST ACCOUNT 331 MAIN STREET CHATHAM, NJ 07928	216/5.01	507 WASHINGTON ST	2023	\$4,267.98
WOLF VESPASIANO LLC ATTORNEY TRUST ACCOUNT 331 MAIN STREET CHATHAM, NJ 07928	216/5.01	507 WASHINGTON ST	2024	\$5,605.92

WOLF VESPASIANO LLC ATTORNEY TRUST ACCOUNT 331 MAIN STREET CHATHAM, NJ 07928	215/3	405 WASH ST/ 404 COURT ST	2023	\$1,638.77
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2. **WHEREAS**, the Court entered judgment which reduced the assessed value of the properties; and,

3. **WHEREAS**, as a result, Sharon Curran, Collector of Revenue for the City of Hoboken has calculated the refund to be made in accordance with the judgment.

NOW, THEREFORE, BE IT RESOLVED, that a warrant be drawn on the City Treasury in the total amount of **\$16,234.38**, made payable to the following:

NAME	BL/LOT/UNIT	PROPERTY	YEAR	AMOUNT
JENNIFER R JACOBUS TRUSTEE FOR VAN LOON, YVETTEE LIVING TRSUT 201 LITTLETON ROAD, SUITE 100 MORRIS PLAINS, NJ 07950	261.01/1 C0437	1100 MAXWELL LANE	2024	\$4,721.71
WOLF VESPASIANO LLC ATTORNEY TRUST ACCOUNT 331 MAIN STREET CHATHAM, NJ 07928	216/5.01	507 WASHINGTON ST	2023	\$4,267.98
WOLF VESPASIANO LLC ATTORNEY TRUST ACCOUNT 331 MAIN STREET CHATHAM, NJ 07928	216/5.01	507 WASHINGTON ST	2024	\$5,605.92
WOLF VESPASIANO LLC ATTORNEY TRUST ACCOUNT 331 MAIN STREET CHATHAM, NJ 07928	215/3	405 WASH ST/ 404 COURT ST	2023	\$1,638.77

RESULT: Adopted [Unanimous] SPONSOR: Phil Cohen SECOND: Emily Jabbour AYES: Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle
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Transportation and Parking

25-578

RESOLUTION CONFIRMING AN EMERGENCY CONTRACT AWARD TO ORCHARD HOLDINGS LLC IN THE AMOUNT OF \$38,000.00 FOR FURNISHING & INSTALLING REPLACEMENT TRAFFIC SIGNAL (COUNCIL MEMBER JABBOUR)

1. **WHEREAS**, the traffic signal at the southwest corner of the intersection of Observer Highway and Harrison Street was struck and dislodged from its foundation as the result of a motor vehicle crash; and,
2. **WHEREAS**, the City requires the repair and reinstallation of the traffic signal and,
3. **WHEREAS**, the City has filed an insurance claim to be reimbursed for the cost to repair and reinstall the signal; and,
4. **WHEREAS**, this matter falls into the emergency purchasing exception because the work is required to start as soon as possible; and,
5. **WHEREAS**, Orchard Holdings, LLC submitted a proposal on May 27, 2025, to make repairs and reinstall the traffic signal at Observer Highway and Harrison Street; and,
6. **WHEREAS**, the City Council seeks to confirm a contract with Orchard Holdings, LLC in the amount not to exceed \$38,000.00 for emergency work to repair and reinstall the traffic signal at Observer Highway and Harrison Street, for a term to expire upon completion of the construction project; and,
7. **WHEREAS**, this resolution corrects a procedural error in Resolution 25-486 approved by the City Council at its June 4, 2025 meeting, when the funds related to this contract were not certified. This resolution provides certification of these funds.

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Hoboken, that a contract award under the emergency purchasing exception is hereby confirmed to Orchard Holdings, LLC subject to the following:

1. The award of this contract is subject to finalization of the contract terms to be drafted and approved by Corporation Counsel.
2. Any contract amendments which may become necessary shall be subject to the City's ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council.
3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
4. The Mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

Orchard Holdings, LLC
1913 Atlantic Avenue, Suite 193
Manasquan, NJ 08736

RESULT:	Adopted [Unanimous]
SPONSOR:	Emily Jabbour
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-579

RESOLUTION AWARDING A CONTRACT TO MCMANIMON, SCOTLAND & BAUMANN, LLC. FOR COUNSEL ON AN AGREEMENT TO REHABILITATE THE 916 GARDEN STREET GARAGE IN THE AMOUNT OF \$15,000 (**COUNCIL MEMBER JABBOUR**)

1. **WHEREAS**, the 916 Garden Street has faced frequent closures and repairs as the equipment has reached the end of its useful life; and,
2. **WHEREAS**, an Alternatives Assessment was completed in 2023 to evaluate different options for the property, resulting in a recommendation to fully rehabilitate the automated parking garage through a design, build, operate and maintain contract; and,
3. **WHEREAS**, the City Council approved a contract with Walker Consultants on September 18, 2024, via Resolution 24-807 to prepare solicitation documents for a competitive procurement for a vendor to rehabilitate and operate the facility; and,

4. **WHEREAS**, the type of agreement anticipated through this rehabilitation is new to the City of Hoboken and requires outside legal counsel to assess and develop appropriate terms and conditions for the potential vendor; and,
5. **WHEREAS**, service to the City as Special Legal Counsel – General Litigation is a professional service as defined by N.J.S.A. 40A:11-1 et seq.; and,
6. **WHEREAS**, the City of Hoboken issued Request for Proposal No. 24-19 seeking a qualified attorney or firm to represent the City in labor and employment matters; and,
7. **WHEREAS**, proposals were received from various law firms and all firms were prequalified to provide services to the City by way of resolution dated January 8, 2025, including McManimon, Scotland & Baumann, LLC (“MSB”), which firm is currently working on ongoing matters for the City; and,
8. **WHEREAS**, the Administration recommends awarding a contract to MSB to represent and/or advise the City in matters related to the rehabilitation of 916 Garden Street garage in the not to exceed amount of \$15,000.00, to be paid at a rate of \$275 blended hourly rate, for a term to begin July 10, 2025, and to expire June 30, 2026.

NOW, THEREFORE, BE IT RESOLVED, that a contract is hereby awarded to MSB to represent and/or advise the City in labor and employment matters in the amount of \$15,000.00, to be paid at a blended rate of \$275 per hour, for a term to begin July 10, 2025, and to expire June 30, 2026; and:

1. The award of this contract is subject to finalization of the contract terms.
2. Any change orders which shall become necessary shall be subject to the City’s ability to appropriate sufficient funds, which appropriation shall be at the sole discretion of the City Council.
3. The Council hereby authorizes the Mayor, or his designee, to execute any and all documents and take any and all actions necessary to complete and realize the intent and purpose of this resolution.
4. The Mayor, or his designee, is hereby authorized to execute an agreement as outlined herein with:

McManimon, Scotland & Baumann, LLC
75 Livingston Avenue
Roseland, NJ 07068

RESULT:	Adopted [Unanimous]
SPONSOR:	Emily Jabbour
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

ORDINANCES

Introduction and First Reading

25-580 **B-790**

ORDINANCE OF THE CITY OF HOBOKEN, IN THE COUNTY OF HUDSON, NEW JERSEY APPROVING THE CONTRIBUTION OF A PORTION OF THE ANNUAL SERVICE CHARGE PROVIDED TO THE CITY OF HOBOKEN PURSUANT TO THE FINANCIAL AGREEMENT BY AND BETWEEN THE CITY OF HOBOKEN AND JB112 URBAN RENEWAL LLC, INTO THE CITY'S PILOT EDUCATION TRUST ACCOUNTS (COUNCIL MEMBER JABBOUR)

1. **WHEREAS**, the City of Hoboken (the “City”) is a public body corporate and politic of the State of New Jersey; and,
2. **WHEREAS**, the Local Redevelopment and Housing Law, *N.J.S.A. 40A:12A-1 et seq.* (the “**Redevelopment Law**”) authorizes municipalities to determine whether certain parcels of land in the municipality constitute “areas in need of redevelopment,” as such term is defined in the Redevelopment Law; and,
3. **WHEREAS**, by Resolution adopted July 18, 2007, the City Council (the “**City Council**”) identified and designated various parcels within the northwestern section of the City as areas in need of redevelopment (the “**Western Edge Redevelopment Area**”) in accordance with the Redevelopment Law; and,
4. **WHEREAS**, Just Block 112, LLC was designated as the redeveloper for the Jefferson Street subarea within the Western Edge Redevelopment Area, and the City and Just Block 112, LLC entered into the Amended and Restated Redevelopment Agreement between Just Block 112, LLC and the City dated August 10, 2020, as amended to date (the “**Redevelopment Agreement**”); and,

5. **WHEREAS**, the Redevelopment Agreement permits the development of a mixed-use project on a portion of Block 112 within the City, with such project to include a 357-unit mixed-use inclusionary residential development, on-site parking, stormwater infrastructure, and publicly accessible space (the “**Project**”); and,
6. **WHEREAS**, the Project was approved as a matter of law, and a resolution memorializing such approval was adopted by the Planning Board on May 6, 2023; and
7. **WHEREAS**, pursuant to the Redevelopment Agreement, transfers of the interests in a designated redeveloper and the Project may be made to affiliate entities, such as urban renewal entities; and,
8. **WHEREAS**, Just Block 112, LLC has transferred its redevelopment interests in the Project and fee interests in a portion of Block 112, now known on the tax maps of the City of Hoboken as Block 112, Lot 1.01 (the “**Property**”), to JB112 Urban Renewal LLC (the “**Entity**”), as a Permitted Transfer (as defined in the Redevelopment Agreement); and,
9. **WHEREAS**, in accordance with the Long Term Tax Exemption Law, *N.J.S.A.* 40A:20-1 *et seq.* (the “**Exemption Law**”), the Entity and the City shall enter into a financial agreement (the “**Financial Agreement**”) providing for the payment of an annual service charge (the “**Annual Service Charge**”); and,
10. **WHEREAS**, pursuant to *N.J.S.A.* 40A:12A-22(m) of the Redevelopment Law, municipalities are permitted to exercise all those public and essential governmental functions necessary or convenient to effectuate the purposes of the Redevelopment Law, including the power to arrange or contract with a public agency, to the extent that it is within the scope of that agency's functions, to cause the services customarily provided by such other agency to be rendered for the benefit of the occupants of any redevelopment area or housing project for school purposes; and,
11. **WHEREAS**, the Hoboken Board of Education (the “**Board**”) and the three public charter schools authorized by the NJ Commissioner of Education located within the City (Hoboken Charter School (“**HCS**”), Hoboken Dual Language Charter School (“**HoLa**”), and Elysian Charter School of Hoboken (“**Elysian**”), collectively, the “**Public Charter Schools**,” and together with the Board, the “**Public Schools**”) constitute “public agencies” within the context of *N.J.S.A.* 40A:12A-22(m) and constitute public local education agencies; and,
12. **WHEREAS**, the City Council authorized the establishment of four (4) PILOT education trust accounts (the “**PILOT Education Trust Accounts**”), one for each of the Public Schools, pursuant to Ordinance B-700, adopted on September 4, 2024 (the “**PILOT Education Trust Accounts Ordinance**”); and,
13. **WHEREAS**, as described herein, the City has determined to allocate a portion of the Annual Service Charge provided by the Entity pursuant to the Financial Agreement into the PILOT Education Trust Accounts established by the PILOT Education Trust Accounts

Ordinance and provide for the disbursement of such funds directly to each of the Public Schools in order to enable the Public Schools to continue to provide a thorough and efficient education to the children of the City; and,

14. **WHEREAS**, disbursement of monies from the PILOT Education Trust Accounts shall be used for any school purpose not contrary to law (the “**School Improvements**”) consistent with the fiduciary obligations owed with payments made pursuant to N.J. Stat. § 54:4-75.

NOW, THEREFORE, BE IT ORDAINED AND ENACTED by the City Council of the City of Hoboken in the County of Hudson, State of New Jersey as follows:

I. GENERAL

The aforementioned recitals are incorporated herein as though fully set forth at length.

II. AMENDMENT OF THE PILOT EDUCATION TRUST ACCOUNTS ORDINANCE

The City hereby amends the PILOT Education Trust Accounts Ordinance to include the Annual Service Charge’s incorporation into the PILOT Education Trust Accounts.

III. AUTHORIZATION FOR THE DEPOSIT OF A PORTION OF THE ANNUAL SERVICE CHARGE INTO THE PILOT EDUCATION TRUST ACCOUNTS AND FOR THE DISTRIBUTION OF SUCH FUNDS THEREFROM

A. Portions of the Annual Service Charge provided by the Entity pursuant to the Financial Agreement shall be apportioned into the PILOT Education Trust Accounts to fund School Improvements as follows:

1. Beginning in the first year of the term of the Financial Agreement, and for each year thereafter, the City shall apportion two hundred and fifty thousand dollars (\$250,000.00) per year, increasing by two percent (2%) each January 1st thereafter up to and including the Termination Date (as defined in the Financial Agreement) from the Annual Service Charge to be apportioned into each of the PILOT Education Trust Accounts in accordance with Section A. 4 below.

2. Allocations of Annual Service Charge shall be pro rata in any year in which the applicable Financial Agreement is not in effect for a full year.

3. The City may continue to determine to allocate a portion of additional annual service charges pursuant to financial agreements by and between the City and an urban renewal entity into the PILOT Education Trust Accounts in the future. The City may incorporate those additional annual service charges into the PILOT Education Trust Accounts pursuant to an additional amendment to the PILOT Education Trust Accounts Ordinance.

4. Portions of the Annual Service Charge received from the Entity pursuant to III. A. 1 through 3 shall be deposited into the PILOT Education Trust Accounts within two (2) weeks of receipt thereof by the Entity and allocated to each Public School's PILOT Education Trust Account. Such funds shall be for the exclusive use of each applicable Public School as follows:

a. Deposits into the PILOT Education Trust Accounts shall be allocated to each Public School's PILOT Education Trust Account annually using the percentage of Hoboken-resident K-12 students that attended such Public School as of October 15th of the immediately preceding calendar year as compared to the total Hoboken-resident K-12 students, at all Public Schools. By way of example, if there are one hundred (100) Hoboken-resident K-12 students at all Public Schools on October 15th and fifteen (15) attend a particular Public School, such Public School shall receive fifteen percent (15%) of the following years apportionment of any monies due collectively to the PILOT Education Trust Accounts to the respective PILOT Education Trust Account of such Public School.

b. The percentages of Hoboken-resident K-12 students in each Public School as of October 15th of each year shall be based on the enrollment counts set forth in the certified application for state student aid (ASSA) and state aid notices issued by the Commissioner of Education by December 31st of each year.

B. The City shall disburse directly to the applicable Public School, upon written request, some or all amounts in its PILOT Education Trust Account, which funds may be used by the Public School for any school purpose not contrary to law.

IV. SEVERABILITY

If any part of this Ordinance shall be deemed invalid, such parts shall be severed and the invalidity thereby shall not affect the remaining parts of this Ordinance.

V. AVAILABILITY OF THE ORDINANCE

A copy of the Ordinance shall be available for public inspection at the offices of the City.

VI. EFFECTIVE DATE

This Ordinance shall take effect according to applicable law.

RESULT:	1st Reading [Unanimous]
SPONSOR:	Emily Jabbour
SECOND:	Tiffanie Fisher
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Russo, Doyle
ABSENT:	Ruben Ramos

~~ORDINANCE TO AMEND CHAPTER 190-17 ENTITLED NO TURN ON RED TO
ADD TURN RESTRICTIONS TO VARIOUS INTERSECTIONS CITYWIDE~~

~~25-581~~

~~B-791~~

AN ORDINANCE AMENDING CHAPTER 141 (PARKING GARAGES AND LOTS,
PUBLIC) OF THE HOBOKEN CITY CODE TO AMEND TRANSIENT PARKING RATES
IN MUNICIPAL PARKING FACILITIES (**COUNCIL MEMBER JABBOUR**)

1. **WHEREAS**, Chapter 141 of the General Code of the City of Hoboken establishes the rules and tariff schedule associated with the City's off-street municipal parking facilities; and,
2. **WHEREAS**, monthly parking rates in City of Hoboken owned garages and lots are approximately 30 percent below market rate; and,
3. **WHEREAS**, monthly parking rates in City of Hoboken owned garages and lots have not been changed in over 6 years; and,
4. **WHEREAS**, a lack of rate increases during the previous years has left the Hoboken Parking Utility with limited resources available to pay for facilities maintenance, replacing obsolete parking access and revenue control systems, etc.; and,
5. **WHEREAS**, this ordinance will modernize parking rates, and additional revenues generated from price increases will be reinvested into improvements to off-street municipal parking facilities, including maintenance and repairs, and modernizing parking access and revenue control systems.

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows
(additions noted in underline, ~~deletions noted in strikethrough~~):

**SECTION ONE: AMENDMENT TO HOBOKEN CODE CHAPTER 141 (PARKING GARAGES
AND LOTS, PUBLIC) TO AMEND TRANSIENT PARKING RATES IN MUNICIPAL PARKING
FACILITIES**

§ 141-6 Municipal parking garage transient rates.

[Added 1-3-2017 by Ord. No. Z-456; amended 11-7-2018 by Ord. No. B-66]

A. Transient rates for the municipal garages are as follows:

	Garage B	Garage D	Garage G	Midtown	Garden Street	Garden Street (SUV)
Up to 1/2 hour	\$3	\$3	N/A	N/A	N/A	N/A
Up to 1 hour	\$5	\$5	N/A	\$3 <u>\$4</u>	N/A	N/A
Up to 2 hours	\$11 <u>\$12</u>	\$11 <u>\$12</u>	N/A	\$7 <u>\$8</u>	N/A	N/A
Up to 3 hours	N/A	N/A	N/A	\$9 <u>\$10</u>	N/A	N/A
Up to 4 hours	\$16 <u>\$18</u>	\$16 <u>\$18</u>	N/A	N/A	N/A	N/A
Up to 8 hours	\$20 <u>\$22</u>	\$20 <u>\$22</u>	N/A	\$17 <u>\$18</u>	N/A	N/A
Up to 12 hours	\$28 <u>\$30</u>	\$28 <u>\$30</u>	N/A	\$22 <u>\$24</u>	N/A	N/A
Up to 24 hours	\$32 <u>\$36</u>	\$32 <u>\$36</u>	N/A	\$28 <u>\$32</u>	N/A	N/A

B. Special rates for Garage B and Garage D:

1) Enter Sunday through Thursday between 6:00 p.m. and 2:00 a.m.:

- a) Up to one hour: ~~\$4~~ \$5.
- b) Up to two hours: ~~\$11~~ \$12.
- c) Up to four hours: ~~\$15~~ \$16.
- d) Maximum to 7:00 a.m.: ~~\$24~~ \$26.

2) Enter Friday through Saturday between 6:00 p.m. and 2:00 a.m.:

- a) Up to one hour: ~~\$4~~ \$5.
- b) Up to two hours: ~~\$11~~ \$12.
- c) Up to four hours: ~~\$15~~ \$16.
- d) Maximum to 7:00 a.m.: ~~\$32~~ \$36.

C. Special event transient rates for Garage B, Garage D, and Midtown Garage:

[Added 9-1-2021 by Ord. No. B-389]

- 1) A special event is defined as any public or private function or occasion happening within the City of Hoboken that is expected to generate a significant increase in vehicular parking demand.
- 2) The Director of Transportation and Parking, or his or her designee, may activate special event transient rates at their discretion.

- 3) Special event transient rates at Garage B, Garage D, and Midtown Garage are to be determined by the Director of Transportation and Parking or his or her designee.
- 4) Special event transient rates shall apply for a period of up to 12 consecutive hours per day while a special event is happening concurrently.

D. Municipal parking garage transient rates may be amended on an annual basis as of January 1 of every year in accordance with the CPI as reported by the United States Bureau of Labor Statistics, or up to 3%, whichever is lower. If changes are not made in a given year, future annual rates may be amended accounting for multiple years of CPI changes, or up to 3% per year, whichever is lower. However, under no circumstances shall parking permit fees decrease from the previous year.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	1st Reading [7 to 1]
SPONSOR:	Emily Jabbour
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Doyle
NAYS:	Michael Russo

25-582
B-792

ORDINANCE AMENDING CHAPTER 192 PARKING FOR PERSONS WITH DISABILITIES (COUNCIL MEMBER JABBOUR)

1. **WHEREAS**, Chapter 192 of the Hoboken City Code includes regulations for parking spaces for persons with disabilities; and,
2. **WHEREAS**, §192-4(A) designates the parking spaces for persons with disabilities specifically approved to park in a reserved on-street parking space; and,
3. **WHEREAS**, the applications below have been reviewed by the Pain & Disability Institute.

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, ~~deletions noted in strikethrough~~):

SECTION ONE: AMENDMENTS TO HOBOKEN GENERAL CODE CHAPTER 192, §192-4, TO ADD DESIGNATED PARKING SPACES FOR PERSONS WITH DISABILITIES

§192-4 Enumeration of spaces.

- A. Pursuant to the authority granted to the City of Hoboken by N.J.S.A. 39:4-205, the following locations are hereby designated as restricted parking spaces for use by persons who have been issued special vehicle identification cards by the motor vehicle commission. No other person shall be permitted to park in these spaces.

EP, 303 Jefferson Street (east side of Jefferson Street, beginning at a point 134 feet south of the southern curbline of Fourth Street and extending 22 feet southerly therefrom)

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	1st Reading [Unanimous]
SPONSOR:	Emily Jabbour
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-583
B-793

AN ORDINANCE AMENDING CHAPTER 146 ("PEDDLERS; TRANSIENT MERCHANTS") OF THE HOBOKEN CITY CODE TO INCLUDE NON-MOTORIZED MOBILE RETAIL VENDORS (**COUNCIL MEMBER JABBOUR**)

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, ~~deletions noted in strikethrough~~):

SECTION ONE: ORDINANCE AMENDING CHAPTER 146 ("PEDDLERS; TRANSIENT MERCHANTS") OF THE HOBOKEN CITY CODE TO INCLUDE NON-MOTORIZED MOBILE RETAIL VENDORS

Article I. Vendors, Peddlers and Itinerant Merchants

§ 146-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

NON-PROFIT-MAKING VENDOR

A person who sells goods, wares or merchandise, the proceeds of which are devoted exclusively to the purposes of a philanthropic, charitable or religious society on whose behalf he acts as agent with or without pay, but excluding those individuals or organizations soliciting for funds or other things of value for which no merchandise, wares or services are given in return and for which licenses are required and control administered as provided for by any other chapter or section of the Code of the City of Hoboken.

PEDDLER or VENDOR

A person, commonly referred to either as a "transient merchant," "itinerant merchant," or "salesman," "peddler," "vendor" or other such person, who goes from place to place by traveling on the streets, or from house to house, and carries or transports with him pre-packaged foodstuffs, goods, wares and merchandise for the purpose of selling and delivering them to consumers, or who, without carrying or transporting merchandise, sells or proposes to sell services of any kind. This definition shall include "mobile retail pre-packaged food vendors," as defined in § 147-3.

[Amended 3-7-2012 by Ord. No. Z-159]

PERSON

An individual, firm, partnership, corporation, association and principal or agent thereof.

NON-MOTORIZED MOBILE RETAIL VENDOR

A person who sells goods, wares, or merchandise (excluding food and beverages) from a trailer that can be affixed to a vehicle and is registered and is able to be operated on the public streets of the State of New Jersey, used on the public sidewalks or in public places. Such vendors must comply with size, safety, and accessibility standards.

§ 146-2. Non-applicability~~Nonapplicability~~.

[Amended 3-7-2012 by Ord. No. Z-159]

A. The provisions of this article shall not affect any non-profit-making vendor or any person duly licensed by the Commissioner of Banking and Insurance or the Real Estate Commission of the State of New Jersey.

B. The provisions of the article shall not affect any business which falls within the meaning of "mobile retail food vendor," as defined in Chapter 147 of Hoboken City Code, except mobile retail pre-packaged food vendors and non-motorized mobile retail vendors.

§ 146-5. Fee exemption.

A. The license fee only shall not apply to any person qualifying under N.J.S.A. 45:24-9 or to any person who conducts a sale pursuant to statute or court order nor to any person who has an established local business. "Local business" shall be defined to be, within the City of Hoboken, an establishment which displays and offers for sale the same products that the peddler, hawker, vendor or solicitor are offering or

sale, and the business of which is not devoted primarily by the nature thereof to house-to-house or itinerant vehicular selling.

B. Non-motorized mobile retail vendors operated by an established local business are exempt from license fees if the trailer is an extension of the business's fixed location within Hoboken.

§ 146-6. Application for license.

Any person desiring a license shall file with the City Clerk of the City of Hoboken an application which shall contain the following information:

- A. The name of the applicant.
- B. If a trade name is used, whether the applicant is an individual, partnership, association or corporation.
- C. The address of the applicant and telephone number.
- D. The names and addresses of the persons from which goods making up the stock were or are to be purchased.
- E. Three business references.
- F. The place or places of residence of the applicant for the preceding three years.
- G. A description of the goods or services to be sold.
- H. If the applicant is a corporation, the state in which its Charter is registered and the registered agent's name and address in this state.
- I. If other than an individual, the names and addresses of the partners, officers and any salesmen to be employed.
- J. The number and nature of any arrests or convictions against the applicant, officers, partners or any salesmen to be employed.

K. As to the application, there must be appended a letter or, when applicable, a corporate resolution from the firm authorizing the person signing the application to act as its representative and certifying that the information is correct and accurate.

L. Whether the applicant, in previously operating in this state under a license, has had such license revoked or suspended and, if so, the reasons therefor.

M. The description of vehicle and state license number.

N. For non-motorized mobile retail vendors, the vehicle description required under this subsection shall include trailer dimensions, hitch type, and photographs demonstrating compliance with pedestrian clearance requirements.

§ 146-10. Fee schedule.

[Amended 12-1-1982 by Ord. No. C-235]

The license fee shall be as follows:

A. A fee of \$50 annually shall be charged to the applicant, regardless of his type of business, where the nature of the business does not involve the use of a vehicle of any kind in its operation.

B. Mobile units and non-motorized trailers selling merchandise of any other description shall be \$150 per vehicle/trailer.

C. Non-profit-making vendors shall not be required to pay any license fee.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences,

clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	1st Reading [Unanimous]
SPONSOR:	Emily Jabbour
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-584
B-794

ORDINANCE AMENDING CHAPTER 110-17 REQUIRING WASTE CONTAINERIZATION FOR LARGE MULTI FAMILY BUILDINGS (COUNCILMAN PRESINZANO)

1. **WHEREAS**, the City wishes to provide residents with viable options to contain their waste in a manner that supports the City’s rodent mitigation efforts; and,
2. **WHEREAS**, there is a need to containerize waste from large multi-family buildings that currently use plastic bags; and,
3. **WHEREAS**, the Department of Parks Recreation, and Public Works will review containers proposed by each building to ensure that they can be collected by the City and its contract hauler.

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, deletions noted in strikethrough):

SECTION ONE: AMENDING CHAPTER 110-17 DUTY TO PROVIDE AND FURNISH

- A. There shall be provided for each premises disposable plastic bags or refuse containers with properly fitting lids sufficient in size and number to hold the refuse accumulating between collections.
- (1) For all premises with 10 or fewer units, including residential and business establishments, refuse containers with properly fitting lids shall be required.
 - (2) For all premises with greater than 10 units and less than 50 units, including residential and business establishments, refuse containers with properly fitting lids shall be required except where space constraints prevent the premises from doing so, and only in that case may disposable plastic bags be utilized, but shall be stored indoors between collections.
 - (3) For all premises with greater than 50 units, refuse containers with properly fitting lids shall be required. For those premises:
 - (a) Garbage shall be compacted inside refuse containers. Types and size of refuse containers for compacted garbage shall be approved by the Department of Parks, Recreation, and Public Works to ensure that those containers can be collected by the City.
 - (b) Cardboard shall be baled.
 - (4) All food and beverage service establishments, regardless of the amount of units on the premises, shall be required to utilize refuse containers with properly fitting lids.
 - (5) It is the property owner's responsibility to have containers placed at curbside for collection on the designated collection day(s) and time(s) only.
 - (6) Property owners shall further comply with the recycling collection and storage requirements in Chapter 151.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect on July 9, 2026.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	1st Reading [Unanimous]
SPONSOR:	Joe Quintero
SECOND:	Paul Presinzano
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-585
B-795

ORDINANCE AMENDING CHAPTER 110 ADDING SECTION 28 FOR SIDEWALK TRASH SHEDS (COUNCILMAN PRESINZANO)

- 1. WHEREAS**, the City wishes to provide residents with viable options to contain their waste in a manner that supports the City’s rodent mitigation efforts; and,
- 2. WHEREAS**, there is a need to accommodate buildings with no space for refuse containers that also do not have basement access; and,
- 3. WHEREAS**, through an application process, property owners may request to install a sidewalk trash shed at their own expense; and,
- 4. WHEREAS**, the Department of Parks Recreation, and Public Works will review each application on a case-by-case basis.

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, ~~deletions noted in strikethrough~~):

SECTION ONE: ADDING SECTION 28 FOR SIDEWALK TRASH SHEDS

§ 110-28 Sidewalk Trash Sheds

- A. Premises with greater than 10 units and less than 50 units with no basement access or space for refuse containers may request a sidewalk trash shed for containerization of waste.
- B. All requests for a sidewalk trash shed shall be submitted to the Director of Parks, Recreation, and Public Works ("PRPW"). The determination as to whether to grant or deny the requests shall be at the sole discretion of the Director of PRPW or their designee.
- B. Property owners must meet the following criteria:
 - 1. Prove that the applicant does not have outdoor space for refuse containers and/or does not have basement access to store refuse containers.
 - 2. Provide a detailed sketch showing no basement or access, width of sidewalk space, building entrances/exits, tree pits and other street furniture that may impact land constraints
 - 3. Provide specifications for proposed waste enclosures for refuse containers. Enclosure specifications must include dimensions (w x l x h) and detailed sketch or map showing desired installation location on the sidewalk, including install requirements.
 - 4. Trash sheds should not be permanent structures and must be able to be moved for routine maintenance provided by the property owner.
 - 5. Desired installation location must provide clearance of at least 3ft of unobstructed sidewalk space per the Americans with Disabilities Act (ADA).
 - 6. Applicants who do not have more than 3ft clearance of sidewalk space may not apply.
 - 7. There shall be a \$50 application fee.
- C. Refuse containers shall meet the specifications of this chapter.
- D. Property owners shall further comply with the recycling collection and storage requirements in Chapter 151.

SECTION TWO: AMENDING SECTION 27.1 FOR PARKS, RECREATION, AND PUBLIC WORKS

§ 110-27.1 Exception provision.

All requests for an exception to any of the requirements set forth in this article shall be submitted in writing to the Director of ~~Environmental Services~~ Parks, Recreation, and Public Works or their designee. The determination as to whether to grant or deny the exception shall be in the sole discretion of the Director of ~~Environmental Services or his or her~~ Parks, Recreation, and Public Works or their designee.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	1st Reading [Unanimous]
SPONSOR:	Paul Presinzano
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-586
B-796

ORDINANCE AMENDING CHAPTER 58-27.1 RECREATION FEES (**COUNCILMAN PRESINZANO**)

1. **WHEREAS**, the Division of Recreation charges minimal fees to help offset operating costs of the recreation programs; and
2. **WHEREAS**, the range of authorized recreation fees needs to increase due to increases in operating costs and participation; and
3. **WHEREAS**, families receiving free and reduced lunch would not be impacted by increases in recreation fees; and,
4. **WHEREAS**, special needs programming fees would be set at the discretion of the Division of Recreation.

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, deletions noted in strikethrough):

SECTION ONE:

B. REGISTRATION FEES FOR ALL RECREATION PROGRAMS ARE AS FOLLOWS:

Applicant Type	Applicant Status	Registration Fee
Child	Resident	\$25 to \$75 per program
		<u>\$35 to \$100 per program</u>
	Nonresident	\$35 to \$100 per program
		<u>\$45 to \$125 per program</u>
	Free or Reduced Lunch	\$0
Adult	Resident	\$40 to \$100 per program*
		<u>\$50 to \$125 per program</u>
	Nonresident	\$60 to \$100 per program
		<u>\$70 to \$1245 per program</u>

The Division of Recreation shall determine the recreation fees per program per year, within the limits set herein. The fee determination shall be based on actual costs per person per program. Fees may be adjusted at the discretion of the Division of Recreation for special recreation programming.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent

jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This Ordinance shall take effect immediately upon passage and publication as provided by law.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	1st Reading [7 to 1]
SPONSOR:	Paul Presinzano
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Doyle
NAYS:	Michael Russo

25-587
B-797

ORDINANCE AMENDING CHAPTER 58-23 PERMITS ENABLING RESERVATIONS OF RESILIENCITY PARK COMMUNITY ROOM (COUNCILMAN PRESINZANO)

- 1. **WHEREAS**, the City Council established fees for hosting events in City parks and public property by way of ordinance number B-515 dated December 21, 2022; and,
- 2. **WHEREAS**, fees are intended to reimburse the City for the considerable labor and other resources expended by the City to host events; and,
- 3. **WHEREAS**, the City wishes to amend the established fees to allow for private gatherings, such as birthday parties, to be held solely in the Community Room located at ResilienCity Park for up to two hours; and,
- 4. **WHEREAS**, reservations would be accepted subject to the process outlined in Chapter 58; and,
- 5. **WHEREAS**, the permittee shall pay the rental fee for business entities; and,

6. **WHEREAS**, families on free or reduced lunch shall receive the discounted rate of \$50/hour and shall present their benefits letter at the time of permit application to receive discounted rate.

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain that Chapter 58-23 of the municipal code of the City of Hoboken is amended as follows (additions noted in underline, deletions noted in strikethrough):

SECTION ONE: §58-23 G. RENTAL FEES

G. Rental fees. A permit pursuant to this chapter shall not be issued until the permittee has paid the rental fee required by this section, if applicable.

(1) The following rental fees shall be imposed for use of designated park areas:

Permittee	Rental Fee
501(c)3 Nonprofit Entities	\$50/hour or \$25/class (up to 2 hours)
Hoboken Business Entities	\$75/hour or \$25/class (up to 2 hours)
Business Entities	\$250/hour or \$250/class (up to 2 hours)

(a) For private gatherings at the Community Room at ResilienCity Park, the rental fee for business entities shall be imposed, except for families who qualify for free and reduced lunch the fee for 501(c)3 Nonprofit Entities shall be imposed.

(2) The following rental fees shall be imposed for use of recreation facilities in City parks:

Permittee	Rental Fee
501(c)3 Nonprofit Entities	\$50/hour (minimum of 3 hours)
Business Entities	\$125/hour or \$125/class (minimum of 3 hours)

(3) The following rental fees shall be imposed for events on public property other than recreation facilities and designated park areas, including:

Permittee	Rental Fee
501(c)3 Nonprofit Entities	\$50/hour or \$50/class (up to 2 hours)
Hoboken Business Entities	\$75/hour or \$75/class (up to 2 hours)
Other Business Entities	\$250/hour or \$250/class (up to 2 hours)

SECTION TWO: §58-23 L. PRIVATE GATHERINGS

L. Private gatherings. The City does not reserve designated park facilities for private gatherings except for the Community Room at ResilienCity Park. Such gatherings are permissible without a permit on an informal, first-come, first-served basis:

(1) When the proposed activity or use will not unreasonably interfere with or distract from the general public enjoyment of the park, or exclude other members of the public from using designated park facilities except when a permit is issued for the Community Room at ResilienCity Park which grants private use for the permitted time.

(2) When the proposed activity will not interfere with the public health, safety or welfare of the general public.

(3) When the permittee cleans the area used at their own cost and expense at the end of the gathering.

(4) When the proposed activity or use is not reasonably anticipated to incite violence or public disorder.

(5) When the proposed activity will not entail a burdensome expense to the City.

(6) When the gathering abides by all park rules.

SECTION THREE: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION FOUR: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FIVE: EFFECTIVE DATE

This Ordinance shall take effect upon passage and publication as provided by law.

SECTION SIX: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	1st Reading [Unanimous]
SPONSOR:	Paul Presinzano
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Presinzano, Quintero, Ramos, Russo, Doyle

25-588

ORDINANCE AMENDING CHAPTER 193 WATER (COUNCIL MEMBER DOYLE)

1. **WHEREAS**, the City of Hoboken, in the County of Hudson, New Jersey, a public body corporate and politic of the State of New Jersey (the “City”) owns the water transmission and distribution system (the “System”) within the geographic limits of the City for the residents of, and other System users in, the City (the “Users”); and,
2. **WHEREAS**, on May 18, 1994, the City executed an agreement with Hackensack Water Company and Mid-Atlantic Utilities Corporation (the “Original Contract Partners”), as amended in 1996 and 2001 (the “Agreement”), for the operation, maintenance and management of the System pursuant to the County and Municipal Water Supply Act, N.J.S.A. 40A:31-1; and,
3. **WHEREAS**, the City executed an amendment to the Agreement by and among the City, Suez Water New Jersey, Inc. (“SWNJ”) and Suez Water Environmental Services, Inc. (“SWES” and together with SWNJ, the “Contract Partner”), successors or assigns of the Original Contract Partners, entitled “Amended and Restated Operation, Maintenance and Management Agreement”, effective July 1, 2019 (the “Amended Agreement”); and,
4. **WHEREAS**, pursuant to Sections 7(B)(8) and 17 of the Amended Agreement, the City shall establish all rents, rates and fees and other charges to be collected from the Users sufficient to pay all amounts due to the Contract Partner, other vendors and necessary for debt service under the Amended Agreement (collectively, the “Annual Costs”); and,
5. **WHEREAS**, pursuant to the ordinance adopted by City Council on May 1, 2019 (the “**Ordinance**”), the City created the City of Hoboken Water Utility (the “Utility”), a municipal utility for the management of the System to accurately and properly budget and account for the expenses and revenues relating thereto; and,

6. **WHEREAS**, in accordance with the Ordinance, the City amended the Code of the City of Hoboken (the “City Code”) to establish service rate schedules to be charged to the Users (collectively, the “Rates”) in an amount sufficient to provide for the Annual Costs and to ensure that the System operates as a self-liquidating utility on a continuing basis; and,

7. **WHEREAS**, the City engaged the professional engineering firm CDM Smith to conduct a water rate evaluation on behalf of the City of Hoboken; and,

8. **WHEREAS**, the Rates have been adjusted annually at a rate equal to the Consumer Price Index (“CPI”) in accordance with City Code Section 193-12(A); and

9. **WHEREAS**, in addition to the CPI adjustment, in 2022 the Hoboken City Council adopted the following actual rate increases required to operate the system; and,

Year	Rate Increase (%) excluding CPI	Effective Date
2023	9.4%	January 1, 2023
2024	8.0%	January 1, 2024
2025	8.5%	January 1, 2025

10. **WHEREAS**, the Utility is operated and maintained under a contract with Veolia Water Contract Operations, the City anticipates Veolia to increase its monthly service charge to the City based on inflation as measured by the consumer price index; and,

11. **WHEREAS**, the City desires to amend the City Code to provide for a 10.7% increase for 2026, an 10.9% increase in 2027, and an 10.9% increase in 2028, all exclusive of the CPI adjustment under City Code Section 193-12(A), in the Rates to provide for the Annual Costs, which includes the payment to JCMUA for bulk water, Veolia contractual costs, the increase in costs for permanently financing debt at the end of CY 2025, 2026 and 2027, and to ensure that the System operates as a self-liquidating utility on a continuing basis.

Year	Rate Increase (%) excluding CPI	Effective Date
2026	10.7%	January 1, 2026
2027	10.9%	January 1, 2027
2028	10.9%	January 1, 2028

NOW, THEREFORE, the City Council of the City of Hoboken does hereby Ordain as follows (additions noted in underline, deletions noted in strikethrough):

SECTION ONE: AMENDMENT TO WATER CONSUMPTION CHARGES

Section 193-12 of the City Code is hereby amended to read as follows:

193-12 Water consumption charges.

- A. In addition to any other fees or charges provided by law, the owner of every parcel of real property which is connected to the water system of the City of Hoboken or the customer of record of the contract operator or the City of Hoboken Water Utility responsible for payment of rents and service charges shall pay to the contract operator, on behalf of the City of Hoboken Water Utility, the rates and service charges for the consumption of water furnished by the contract operator as hereinafter provided:

[Amended 11-14-2022 by Ord. No. B-505]

Consumption	Charge	Rate (Calendar Year 2023 2025)
0 to 10	Flat charge	\$55.72 <u>\$73.87</u>
11 or more	Consumption charge per 100 cubic feet (CCF)	\$5.572 <u>\$7.387</u>

The foregoing rates and service charges shall, until expiration or termination of the Operation, Maintenance and Management Agreement, be adjusted annually on January 1 at a rate equal to the increase in the Consumer Price Index and are subject to change in accord with law and as determined by the City of Hoboken and the City of Hoboken Water Utility.

In addition to the CPI adjustment, rates shall increase effective January 1 of each calendar year by 10.7% in 2026, 10.9% in 2027, and 10.9% increase in 2028.

SECTION TWO: REPEAL OF INCONSISTENT PROVISIONS

All ordinances or parts thereof in conflict or inconsistent with this Ordinance are hereby repealed, but only to the extent of such conflict or inconsistency, it being the legislative intent that all such ordinances or part of ordinances now existing or in effect unless the same are in conflict or inconsistent with any provision of this Ordinance shall remain in effect.

SECTION THREE: SEVERABILITY

The provisions of this Ordinance are declared to be severable and if any section, subsection, sentence, clause or phrase thereof for any reason be held to be invalid or unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining sections, subsections, sentences, clauses and phrases of this Ordinance, but shall remaining in effect; it being the legislative intent that this Ordinance shall stand notwithstanding the invalidity of any part.

SECTION FOUR: EFFECTIVE DATE

This ordinance shall take effect in accordance with applicable law on January 1, 2026.

SECTION FIVE: CODIFICATION

This ordinance shall be a part of the Code of the City of Hoboken as though codified and fully set forth therein. The City Clerk shall have this ordinance codified and incorporated in the official copies of the Code.

The City Clerk and the Corporation Counsel are authorized and directed to change any Chapter, Article and/or Section number of the Code of the City of Hoboken in the event that the codification of this Ordinance reveals that there is a conflict between the numbers and the existing Code, and in order to avoid confusion and possible accidental repealers of existing provisions not intended to be repealed.

RESULT:	Failed [4 to 4]
SPONSOR:	James Doyle
SECOND:	Joe Quintero
AYES:	Phil Cohen, Emily Jabbour, Joe Quintero, James Doyle
NAYS:	Tiffanie Fisher, Paul Presinzano, Ruben Ramos, Michael Russo

25-589
B-798

ORDINANCE FURTHER AMENDING BOND ORDINANCE B-551 OF THE CITY OF HOBOKEN, COUNTY OF HUDSON, NEW JERSEY REALLOCATING FUNDING AT NO ADDITIONAL COST TO THE CITY (**COUNCIL MEMBER DOYLE**)

WHEREAS, on April 3, 2023, the City Council ("City Council") of the City of Hoboken, County of Hudson, New Jersey ("City"), duly adopted Ordinance B-551 ("Original Ordinance"), which, among other things, authorized the issuance of bonds and bond anticipation notes to finance the costs of the improvements described therein, including (i) funding for the completion of various capital improvements for Southwest Resiliency Park, and (ii) the acquisition and installation of public art in and for the City; and

WHEREAS, on March 20, 2024, the City Council duly adopted Ordinance B-653 ("Amending Ordinance"), which, among other things, amended the Original Ordinance by increasing the total appropriation and borrowing amount and including certain new capital improvements and equipment to be completed, acquired, funded and financed thereunder; and

WHEREAS, the City is desirous to further amending the Original Ordinance by way of amendment to the Amending Ordinance for the purpose of (i) decreasing the amount authorized for various capital improvements to and for Southwest Resiliency Park (Block 10) from \$21,000,000 to \$19,000,000, and (ii) correspondingly increasing the amount authorized for improvements to various City parks from \$1,000,000 to \$3,000,000, all as set forth in this Ordinance; and

BE IT ORDAINED, by the City Council of the City (not less than two-thirds of all the members thereof affirmatively concurring), pursuant to the provisions of the Local Bond Law, Chapter 169 of the Laws of 1960 of the State of New Jersey, as amended and supplemented ("Local Bond Law"), as follows:

Section 1. The title of the Original Ordinance, as amended by the Amending Ordinance, is hereby further amended to provide as follows:

"BOND ORDINANCE AUTHORIZING THE COMPLETION OF VARIOUS CAPITAL IMPROVEMENTS (INCLUDING CERTAIN PARK IMPROVEMENTS FOR SOUTHWEST RESELYNCEY PARK AND CHURCH SQUARE PARK) AND THE ACQUISITION OF VARIOUS CAPITAL EQUIPMENT IN AND FOR THE CITY OF HOBOKEN, COUNTY OF HUDSON, NEW JERSEY; APPROPRIATING THE SUM OF \$22,927,000 THEREFOR; AUTHORIZING THE ISSUANCE OF GENERAL OBLIGATION BONDS OR BOND ANTICIPATION NOTES OF THE CITY OF HOBOKEN, COUNTY OF HUDSON, NEW JERSEY IN THE AGGREGATE PRINCIPAL AMOUNT OF UP TO \$22,730,650; MAKING CERTAIN DETERMINATIONS AND COVENANTS; AND AUTHORIZING CERTAIN RELATED ACTIONS IN CONNECTION WITH THE FOREGOING"

Section 2. Sections 2, 3, 4, 5 and 7 of the Original Ordinance, as amended and restated by the Amending Ordinance, are hereby further amended in their entirety to provide as follows:

"Section 2. It is hereby found, determined and declared as follows:

- (a) the estimated amount to be raised by the City from all sources for the purposes stated in Section 7 hereof is \$22,927,000;
- (b) the estimated amount of bonds or bond anticipation notes to be issued for the purposes stated in Section 7 hereof is \$22,730,650; and

- (c) a down payment in the amount of \$196,350 for the purposes stated in Section 7 hereof is currently available in accordance with the requirements of Section 11 of the Local Bond Law, *N.J.S.A.* 40A:2-11, and is hereby appropriated for the purposes set forth herein.

Section 3. The sum of \$22,730,650, to be raised by the issuance of bonds or bond anticipation notes, together with the required down payment in the amount of \$196,350, is hereby appropriated for the purposes stated in this bond ordinance ("Bond Ordinance").

Section 4. The issuance of negotiable bonds of the City in an amount not to exceed \$22,730,650 to finance the costs of the purposes described in Section 7 hereof is hereby authorized. Said bonds shall be sold in accordance with the requirements of the Local Bond Law.

Section 5. In order to temporarily finance the purposes described in Section 7 hereof, the issuance of bond anticipation notes of the City in an amount not to exceed \$22,730,650, is hereby authorized. Pursuant to the Local Bond Law, the Chief Financial Officer is hereby authorized to sell part or all of the bond anticipation notes from time to time at public or private sale and to deliver the same to the purchasers thereof upon receipt of payment of the purchase price plus accrued interest from their date to delivery thereof. The Chief Financial Officer is hereby directed to report in writing to the governing body at the meeting next succeeding the date when any sale or delivery of the bond anticipation notes pursuant to this Amended Bond Ordinance is made. Such report must include the amount, the description, the interest rate and the maturity schedule of the bond anticipation notes sold, the price obtained and the name of the purchaser.

Section 7. The improvements hereby authorized and the purposes for which said obligations are to be issued; the estimated cost of said purposes; the amount of down payment for said purposes; the maximum amount of obligations to be issued for said purposes and the period of usefulness of said purposes within the limitations of the Local Bond Law are as follows:

	<u>Estimated Total Cost</u>	<u>Down Payment</u>	<u>Amount of Obligations</u>	<u>Period of Usefulness</u>
A. Completion of Various Capital Improvements to and for Southwest Resiliency Park (Block 10) for Open Space Preservation; together with the acquisition of all materials and equipment and completion of all work necessary therefor or related thereto (as more particularly described in the NJIB (Project No.	\$19,000,000	\$0	\$19,000,000	20 years

	<u>Purpose/Improvement</u>	<u>Estimated Total Cost</u>	<u>Down Payment</u>	<u>Amount of Obligations</u>	<u>Period of Usefulness</u>
	S340635-08) and Green Acres (Project Nos. 0905-21-051; and -051/UP) applications on file and available for inspection in the office of the City Administrator).				
B.	Acquisition of various Capital Equipment for the Department of Public Works including, but not limited to, Heavy Duty Vehicles, Salt Spreaders and Landscaping Equipment; together with the acquisition of all materials and equipment and completion of all work necessary therefor or related thereto.	400,000	20,000	380,000	15 years
C.	Refurbishing and overhaul of Fire Apparatus; together with the acquisition of all materials and equipment and completion of all work necessary therefor or related thereto.	300,000	15,000	285,000	5 years
D.	Completion of Various Capital Improvements to and for various Parks including, but not limited to, Church Square Park; together with the acquisition of all materials and equipment and completion of all work necessary therefor or related thereto.	3,000,000	150,000	2,850,000	20 years
E.	Acquisition, installation and/or completion of permanent public art in and for the City, together with the acquisition of all materials and capital equipment and the completion of all work necessary therefore or related thereto.	227,000	11,350	215,650	5 Years
	Total	\$22,927,000	\$196,350	\$22,730,650	"

Section 3. The supplemental debt statement provided for in Section 10 of the Local Bond Law, *N.J.S.A.* 40A:2-10, was duly filed in the office of the Clerk prior to the passage of this Ordinance on first reading and a complete executed duplicate original thereof has been filed in the Office of the Director of the Division of Local Government Services in the Department of Community Affairs of the State of New Jersey. The supplemental debt statement shows that the gross debt of the City, as defined in Section 43 of the Local Bond Law, *N.J.S.A.* 40A:2-43, is decreased by this Ordinance by \$100,000 and that the obligations authorized by the Original Ordinance, as amended by the Amending Ordinance, and as further amended by this Ordinance, will be within all debt limitations prescribed by said Local Bond Law.

Section 4. The capital budget is hereby amended to conform with the provisions of this ordinance to the extent of any inconsistency therewith and the regulations promulgated by the Local Finance Board showing full detail the amended capital budget and capital improvement program as approved by the Director of the Division of Local Government Services, New Jersey Department of Community Affairs, are on file with the City Clerk and available for public inspection.

Section 5. All other parts of the Original Ordinance, as amended by the Amending Ordinance, not further amended hereby shall remain in full force and effect.

Section 6. All bonds or bond anticipation notes heretofore issued and now outstanding pursuant to the Original Ordinance and/or the Amending Ordinance, and any moneys expended or any expenses incurred pursuant to appropriations made by the Original Ordinance and/or the Amending Ordinance, if any, shall be accounted and deemed to have been issued, expended or incurred pursuant to this Ordinance.

Section 7. In accordance with the Local Bond Law, this ordinance shall take effect twenty (20) days after the first publication thereof after final passage.

RESULT:	1st Reading [5 to 3]
SPONSOR:	James Doyle
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Quintero, Doyle
NAYS:	Paul Presinzano, Ruben Ramos, Michael Russo

25-590
B-799

ORDINANCE AMENDING BOND ORDINANCE B-493 OF THE CITY OF HOBOKEN, COUNTY OF HUDSON, NEW JERSEY REVISING THE SOFT COSTS BORROWING LIMIT AT NO ADDITIONAL COST TO THE CITY (**COUNCIL MEMBER DOYLE**)

WHEREAS, on October 5, 2021, the City Council of the City of Hoboken, County of Hudson, New Jersey ("City"), duly adopted Ordinance B-493 ("Ordinance"), which, among other things authorized the issuance of bonds and bond anticipation notes to finance the costs of the improvements described therein, including (i) repaving and resurfacing of various streets in the City, and (iii) the acquisition and installation of public art in and for the City (collectively, the "Improvements"); and

WHEREAS, Section 6 of the Ordinance authorizes the use of a portion of the proceeds of any bonds or notes issued pursuant to the Ordinance to pay for interest on such bonds and notes, accounting, engineering, legal fees and other terms as provided in Section 20 of the Local Bond Law, *N.J.S.A. 40A:2-20*, in an amount not to exceed \$3,250,000 (said purposes and amount referred to as the "Section 20 Costs"); and

WHEREAS, based upon increased costs and expenses related to the Improvements, the City is now desirous of increasing the Section 20 Costs authorized by the Ordinance from \$3,250,000 to \$4,550,000, which increase shall not affect the total not to exceed amount of bonds and notes authorized under the Ordinance; and

BE IT ORDAINED, by the City Council of the City (not less than two-thirds of all the members thereof affirmatively concurring), pursuant to the provisions of the Local Bond Law, Chapter 169 of the Laws of

1960 of the State of New Jersey, as amended and supplemented ("Local Bond Law"), as follows:

Section 1. Section 6 of the Ordinance is hereby amended and restated to provide as follows:

"Section 6. The amount of the proceeds of the obligations authorized by this Bond Ordinance which may be used for the payment of interest on such obligations, accounting, engineering, legal fees and other items as provided in Section 20 of the Local Bond Law, *N.J.S.A. 40A:2-20*, shall not exceed the sum of \$4,550,000."

Section 2. If required, the capital budget of the City shall be amended to conform with the provisions of this ordinance to the extent of any inconsistency therewith and the regulations promulgated by the Local Finance Board showing full detail the amended capital budget and capital improvement program as approved by the Director of the Division of Local Government Services, New Jersey Department of Community Affairs, are on file with the City Clerk and available for public inspection.

Section 3. All other parts of the Ordinance not amended hereby shall remain in full force and effect.

Section 4. All bonds or bond anticipation notes heretofore issued and now outstanding pursuant to the Ordinance, and any moneys expended or any expenses incurred pursuant to appropriations made by the Ordinance, if any, shall be accounted and deemed to have been issued, expended or incurred pursuant to this ordinance.

Section 5. In accordance with the Local Bond Law, this ordinance shall take effect twenty (20) days after the first publication thereof after final passage.

RESULT:	1st Reading [5 to 3]
SPONSOR:	James Doyle
SECOND:	Joe Quintero
AYES:	Cohen, Fisher, Jabbour, Quintero, Doyle
NAYS:	Paul Presinzano, Ruben Ramos, Michael Russo

25-591
B-800

BOND ORDINANCE AUTHORIZING THE COMPLETION OF VARIOUS CAPITAL IMPROVEMENTS FOR MARITIME PARK (BLOCK 259, LOTS 1 AND 2) AND 800 MONROE RESILIENCY PARK (BLOCK 87, LOT 1.01) (INLCUDING PUBLIC ART ACQUISITION/INSTALLATION AND CAPITAL FACILITY IMPROVEMENTS

ALLOCATIONS RELATED THERETO) IN AND FOR THE CITY OF HOBOKEN, COUNTY OF HUDSON, NEW JERSEY; APPROPRIATING THE SUM OF \$36,342,000 THEREFOR; AUTHORIZING THE ISSUANCE OF GENERAL OBLIGATION BONDS OR BOND ANTICIPATION NOTES OF THE CITY OF HOBOKEN, COUNTY OF HUDSON, NEW JERSEY IN THE AGGREGATE PRINCIPAL AMOUNT OF UP TO \$34,524,900; MAKING CERTAIN DETERMINATIONS AND COVENANTS; AND AUTHORIZING CERTAIN RELATED ACTIONS IN CONNECTION WITH THE FOREGOING (**COUNCIL MEMBER DOYLE**)

BE IT ORDAINED by the City Council of the City of Hoboken, County of Hudson, New Jersey (not less than two-thirds of all the members thereof affirmatively concurring), pursuant to the provisions of the Local Bond Law, Chapter 169 of the Laws of 1960 of the State of New Jersey, as amended and supplemented ("Local Bond Law"), as follows:

Section 1. The purposes described in Section 7 hereof are hereby authorized as general improvements to be made or acquired by the City of Hoboken, County of Hudson, New Jersey ("City").

Section 2. It is hereby found, determined and declared as follows:

- (a) the estimated amount to be raised by the City from all sources for the purposes stated in Section 7 hereof is \$36,342,000;
- (b) the estimated amount of bonds or bond anticipation notes to be issued for the purposes stated in Section 7 hereof is \$34,424,900; and
- (c) a down payment in the amount of \$1,817,100 for the purposes stated in Section 7 hereof is currently available in accordance with the requirements of Section 11 of the Local Bond Law, *N.J.S.A. 40A:2-11*, and is hereby appropriated for the purposes set forth herein

Section 3. The sum of \$34,524,900, to be raised by the issuance of bonds or bond anticipation notes, together with the sum of \$1,817,100 representing the required down payment, are hereby appropriated for the purposes stated in this bond ordinance ("Bond Ordinance").

Section 4. The issuance of negotiable bonds of the City in an amount not to exceed \$34,524,900 to finance the costs of the purposes described in Section 7 hereof is hereby authorized. Said bonds shall be sold in accordance with the requirements of the Local Bond Law.

Section 5. In order to temporarily finance the purposes described in Section 7 hereof, the issuance of bond anticipation notes of the City in an amount not to exceed \$34,524,900, is hereby authorized. Pursuant to the Local Bond Law, the Chief Financial Officer is hereby authorized to sell part or all of the bond anticipation notes from time to time at public or private sale and to deliver the same to the purchasers thereof upon receipt of payment of the purchase price plus accrued interest from their date to delivery thereof. The Chief Financial Officer is hereby directed to report in writing to the governing body at the meeting next succeeding the date when any sale or delivery of the bond anticipation notes pursuant to this Bond Ordinance is made. Such report must include the amount, the description, the interest rate and the maturity schedule of the bond anticipation notes sold, the price obtained and the name of the purchaser.

Section 6. The amount of the proceeds of the obligations authorized by this Bond Ordinance which may be used for the payment of interest on such obligations, accounting, engineering, legal fees and other items as provided in Section 20 of the Local Bond Law, *N.J.S.A. 40A:2-20*, shall not exceed the sum of \$7,268,000.

Section 7. The improvements hereby authorized and the purposes for which said obligations are to be issued; the estimated costs of each said purpose; the amount of down payment for each said purpose; the maximum amount obligations to be issued for each said purpose and the period of usefulness of each said purpose within the limitations of the Local Bond Law are as follows:

	<u>Purpose/Improvement</u>	<u>Estimated Total Cost</u>	<u>Down Payment</u>	<u>Amount of Obligations</u>	<u>Period of Usefulness</u>
A.	Various Capital Improvements to and for Maritime Park (Block, 259, Lots 1 and 2) and 800 Monroe Resiliency Park (Block 87, Lot 1.01), together with the acquisition of all materials and capital equipment and the completion of all work necessary therefore or related thereto, all as more particularly described in the plans and specifications on file in the office of the City Engineer.	\$36,000,000	\$1,800,000	\$34,200,000	20 years
B.	Acquisition, installation and/or completion of permanent public art in and for the City, together with the acquisition of all materials and capital equipment and the completion of all work necessary therefore or related thereto.	171,000	8,550	162,450	5 years
C.	Completion of various capital facility improvements in and for the City including, but not limited to, improvements for public housing facilities projects, together with the acquisition of	171,000	8,550	162,450	15 years

all materials and capital equipment and
the completion of all work necessary
therefore or related thereto.

TOTAL: **\$36,342,000 \$1,817,100 \$34,524,900**

Section 8. The average period of useful life of the several purposes for the financing of which this Bond Ordinance authorizes the issuance of bonds or bond anticipation notes, taking into consideration respective amounts of bonds or bond anticipation notes authorized for said several purposes, is not less than 19.90 years.

Section 9. Grants or other monies received from any governmental entity will be applied to the payment of, or repayment of obligations issued to finance, the costs of the purposes described in Section 7 above.

Section 10. The supplemental debt statement provided for in Section 10 of the Local Bond Law, *N.J.S.A. 40A:2-10*, was duly filed in the office of the Clerk prior to the passage of this Bond Ordinance on first reading and a complete executed duplicate original thereof has been filed in the Office of the Director of the Division of Local Government Services in the Department of Community Affairs of the State of New Jersey. The supplemental debt statement shows that the gross debt of the City, as defined in Section 43 of the Local Bond Law, *N.J.S.A. 40A:2-43*, is increased by this Bond Ordinance by \$34,524,900 and that the obligations authorized by this Bond Ordinance will be within all debt limitations prescribed by said Local Bond Law.

Section 11. The full faith and credit of the City are irrevocably pledged to the punctual payment of the principal of and interest on the bonds or bond anticipation notes authorized by this Bond Ordinance and, to the extent payment is not otherwise provided, the City shall levy ad valorem taxes on all taxable real property without limitation as to rate or amount for the payment thereof.

Section 12. The applicable Capital Budget is hereby amended to conform with the provisions of this Bond Ordinance to the extent of any inconsistency therewith, and the resolution promulgated by the Local Finance Board showing full detail of the amended Capital Budget and Capital Program as approved by the Director of the Division of Local Government Services, is on file with the Clerk and available for inspection.

Section 13. The City hereby declares its intent to reimburse itself from the proceed of the bonds or bond anticipation notes authorized by this Bond Ordinance pursuant to Income Tax Regulation Section 1.150-2(e), promulgated under the Internal Revenue Code of 1986, as amended ("Code") for "original expenditures", as defined in Income Tax Regulation Section 1.150-2(c)(2), made by the City prior to the issuance of such bonds or bond anticipation notes.

Section 14. The City hereby covenants as follows:

- (a) it shall take all actions necessary to ensure that the interest paid on the bonds or bond anticipation notes is exempt from the gross income of the owners thereof for federal income taxation purposed, and will not become a specific item of tax preference pursuant to Section 57(a)(5) of the Code;
- (b) it will not make any use of the proceeds of the bonds or bond anticipation notes or do or suffer any other action that would cause the bonds or bond anticipation notes to be "arbitrage bonds" as such term is defined in Section 148(a) of the Code and the Regulations promulgated thereunder;
- (c) it shall calculate or cause to be calculated and pay, when due, the rebatable arbitrage with respect to the "gross proceeds" (as such terms is used in Section 148(f) of the Code) of the bonds or bond anticipation notes;
- (d) it shall timely file with the Internal Revenue Service, such information report or reports as may be required by Sections 148(f) and 149(e) of the Code; and
- (e) it shall take no action that would cause the bonds or bond anticipation notes to be "federally guaranteed" within the meaning of Section 149(b) of the Code.

Section 15. The improvements authorized hereby are not current expenses and are improvements that the City may lawfully make. No part of the cost of the improvements authorized hereby has been or shall be specially assessed on any property specially benefited thereby.

Section 16. All ordinances, or parts of ordinances, inconsistent herewith are hereby repealed to the extent of such inconsistency.

Section 17. In accordance with the Local Bond Law, this Bond Ordinance shall take effect twenty (20) days after the first publication thereof after final passage.

RESULT:	1st Reading [7 to 1]
SPONSOR:	Phil Cohen
SECOND:	Emily Jabbour
AYES:	Cohen, Fisher, Jabbour, Quintero, Ramos, Russo, Doyle
NAYS:	Paul Presinzano

~~ORDINANCE AMENDING THE SOUTHWEST HOBOKEN REDEVELOPMENT PLAN~~

~~RESOLUTION OF THE CITY OF HOBOKEN REFERRING AN AMENDMENT OF THE REDEVELOPMENT PLAN FOR THE SOUTHWEST REHABILITATION AREA TO THE CITY OF HOBOKEN PLANNING BOARD FOR REVIEW AND REPORT PURSUANT TO THE LOCAL REDEVELOPMENT AND HOUSING LAW, N.J.S.A. 40A:12A-7~~

PUBLIC PORTION

Members of the public who spoke: Enrique Herrera, Cheryl Fallick, Patricia Waiters, Manuel Rivera Soler, Mary Ondrejka

NEW BUSINESS

At 11:37 PM meeting adjourned of the Governing Body on a motion by Council duly seconded by the Council members.

City Clerk then adjourned the meeting at 11:37 PM.

PRESIDENT OF THE COUNCIL

CITY CLERK